

A Democratic Rule of Law

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Essay for *Law and Contemporary Problems*, “The Politics of the Rule of Law”

Abstract: *Democracy and the rule of law aim at the same thing in different ways. Both aim to make the legal power of complex societies relatively acceptable to a reflective mind. They concern the regime’s accountability to those whom it governs. Yet these two principles address people in quite different registers: democracy addresses citizens, authors (or at least authorizers) of laws, while the rule of law addresses subjects, takers of law who confront its affordances and constraints as facts to be navigated, or as rules of validity to be interpreted and applied, but in neither case as products of the will and judgment of the same citizens who now confront them. In a democracy, every active citizen occupies both roles, often simultaneously.*

The rule of law is entirely possible without democracy, but democracy is impossible, indeed, unintelligible without a certain kind of rule of law. This is so because law specifies the meaning of democracy’s key terms: who constitutes the demos, or people, and when the people may be said to have spoken. These democratic cornerstones are not natural facts, and come into being as political facts only through their articulation in law. The activity of democracy is thus itself dependent on the democratic rule of law.

American democracy suffers from deficiency in the democratic rule of law in three dimensions of canonical rule-of-law values: coherence, prospectivity, and feasibility. I illustrate these points with discussion of, respectively, the temporal and jurisdictional fragmentation of “the people,” the silence of existing law on the structure of federal constitutional conventions, and the near-impossibility of amending the national constitution.

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Introduction

I.	The Rule of Law and Democracy	5
	A. Four Received Approaches	5
	B. Law as a Transcendental Condition of Democracy	7
	C. Democracy as a Rule of Law	9
II.	The Appeal of the Rule of Law: Two Canonical Visions	10
	A. E.P. Thompson's Unqualified Human Good	10
	B. Michael Oakeshott's Roman Redoubt	12
III.	The Rule of Law and Democracy, Again	15
	A. Subjects and Citizens: Two Standpoints	15
	B. The Received Approaches, Revisited	18
	1. Despotism or Sovereignty?	18
	2. Neutrality?	20
	3. Complementarity?	21
	4. Deflation?	21
IV.	The Democratic Rule of Law and the Rule of Public Law	22
V.	Some Problems with the Democratic Rule of Law in the U.S.	26
	A. Coherence: Where (and When) Is the People?	26
	B. Prospectivity: Constitutional Conventions	27
	C. Feasibility: On Amendments	28
	Conclusion	30

Introduction

The reason for renewed interest in the rule of law is not an appetite for the analytic distinctions and multi-part definitional criteria that have attended the concept in the last 75 years or so of jurisprudence. Rather, there is widespread worry that something we could call the rule of law is in danger in the life of the major democracies. Examples are many, and they have partisan valence; but they include executive overreach; public corruption; politically motivated prosecution, and threats and accusations of it; efforts to undermine the integrity of elections, and accusations of such efforts; and profound disagreement over the legitimacy of the Supreme Court's jurisprudence and, indeed, its role in the polity.¹ As I suspect these examples highlight, the worry about the rule of law often seems to dovetail with similarly widespread worry about the health and prospects of democracy. The obvious reason to come to the rule of law is to ask how it can help us, and perhaps what it needs from us. Asking about the rule of law and democracy together, as this Essay does, only intensifies the obvious propriety of this kind of contemporary and pragmatic reason.

Nonetheless, this essay returns to some of that older analytic tradition on its way to an argument about why the rule of law matters, how it relates to democracy, and how each can help the other. It does so because that tradition is often admirable precisely in its restraint, its uncharismatic formalism, its sober sense that the rule of law is a political ideal for the disillusioned. In (understandably) heated times, there is something to learn from that spirit of formalism and restraint—even for the renewal of democracy itself, which is the task to which this essay aims ultimately to make its small contribution.

The rule of law, John Finnis has written, is “[t]he name commonly given to the state of affairs in which a legal system is legally in good shape.”² Following an influential formulation by Lon Fuller in the mid-twentieth century, the rule of law is said to be present where legal requirements are prospective, clear, publicly promulgated, sufficiently coherent to avoid paradoxical requirements, feasible in other practical respects, and administered and enforced consistently with these requirements.³ The force of the idea is perhaps better captured by imagining its opposite: a regime rife with unwelcome surprises, in which one finds oneself culpable based on a law passed since the offending action, a ban adopted in secret, or a set of obligations so obscure, confused, and excessive that one can hardly avoid violating some aspect of it—or, regardless of what the law nominally requires, based on the whim of a hostile judge. The rule of law is an anti-Kafka principle, a check against a form of tyranny that, while it may be almost comic in any given instance, adds up at the level of system to an onslaught against everyday security and dignity.

¹ I won't attempt to canvass this extensive literature. For an example from a left-liberal standpoint, see Michael J. Klarman, *The Degradation of American Democracy—and the Court*, 134 Harv. L. Rev. 1 (2020) (focusing on executive lawlessness, challenges to elections, and the direction of the Supreme Court). For an example from a more right-leaning but mainstream perspective, see Neil Gorsuch, *Over Ruled: The Human Toll of Too Much Law* (2024) (emphasizing the growth of administrative law and the opacity and inconsistency of regulatory obligations).

² John Finnis, *Natural Law and Natural Rights* 270 (2011).

³ See Lon Fuller, *The Morality of Law* 33-94 (rev'd ed. 1969) (setting out the qualities Fuller identifies with the “inner morality of law”).

So stated, it is hard to imagine being against the rule of law. Yet it does inspire a certain ambivalence. The political theorist Judith Shklar once remarked that the rule of law is perennially suspected of being “a bit of ruling-class chatter”—and with some justification, as it “has become meaningless thanks to ideological abuse and general over-use.”⁴ But there is more to the misgivings. Invoking the rule of law may seem to overstate the legitimating work that law’s formal characteristics can do. For critical theorists skeptical of the determinacy and coherence of any legal principle, the idea may seem a will-o’-the-wisp.⁵ For other lines of critical scholarship, emphasis on law’s formal characteristics may distract from attention to the substantive wrongs in which it is involved.⁶ The rule of law has also often been a trope of anti-regulatory and substantively libertarian scholars and polemicists, from the Victorian jurist A.V. Dicey, who bequeaths us the phrase in its current use, to F.A. Hayek, who associated the eclipse of common law by legislation and administration with the destruction of the rule of law, to market-oriented development theorists whose “rule of law indicators” track the anti-statist agenda once called “the Washington consensus” and more recently termed “neoliberalism.”⁷

Yet if the rule of law is an overworked cliché, well, clichés become cliché for a reason: because their salience crops up again and again. And seemingly obvious principles may be worth especially careful attention. Finnis again: “In any age in which the ideal of law, legality, and the Rule of Law enjoys an ideological popularity ... conspirators against the common good will regularly seek to gain and hold power through an adherence to constitutional and legal forms[.]”⁸ While Finnis has in mind his own natural-law theory, the larger point holds: it is well worth reflecting on what we take to be a legal system in good working order, why it is valuable, and how its value relates to those of other institutions and the principles they embody—always, of course, more or less imperfectly. (That Finnis’s assertion at once has general application and

⁴ Judith N. Shklar, “Political Theory and the Rule of Law, 1, 1 in *The Rule of Law: Ideal or Ideology* (Allan C. Hutchinson and Patrick Monahan, eds., 1987). Other have trenchantly criticized ideological use of the term. See, e.g., Jeremy Waldron, *Thoughtfulness and the Rule of Law* 208-34 (criticizing a view that identifies the rule of law with neoliberal economic policies). The editors of this volume criticized the identification of rule of law with constitutional adjudication and sought to vindicate what they regarded as “democratic and communal values” and relegate the rule of law to “a much more humble position.” Hutchinson and Monahan, “Introduction” at xii.

⁵ I have in mind here the critical legal studies position associated with Duncan Kennedy. See Duncan Kennedy, “Freedom and Constraint in Adjudication: A Critical Phenomenology,” in *Legal Reasoning: Collected Essays* at 11-85 (2008) (arguing for an account of legal interpretation that assumes considerable interpretive latitude and rejects the idea that the content or meaning of a stated legal rule or principle determines its application). Interestingly, Kennedy’s essay began as a contribution to the Hutchinson and Monahan volume cited in the previous footnote. See Duncan Kennedy, “Toward a Critical Phenomenology of Judging,” in Monahan and Hutchinson, *supra* n. ___ at 141-67).

⁶ See, e.g., Robert L. Hale, *Freedom Through Law: Public Control of Private Governing Power* (1952) (arguing that the formal characteristics of property and contract law conceal the substantive differences in power that they create); Daria Roithmayr, *Reproducing Racism: How Everyday Choice Locks in White Advantage* (2014) (arguing that formal equal rules and rational individual choices that are not discriminatorily motivated may nonetheless replicate earlier patterns of inequality); Cheryl I. Harris, *Whiteness as Property*, 106 Harv. L. Rev. 1707 (1993) (criticizing formal conceptions of equal treatment for laundering and reproducing prior regimes of explicit inequality).

⁷ See Jeremy Waldron, *Thoughtfulness and the Rule of Law* 208-34 (2024) (documenting and criticizing “Washington Consensus” uses of the idea of rule of law to support substantive pro-market agendas); Owen M. Fiss, *The Autonomy of Law*, 26 Yale J. Int’l L. 517 (2001) (criticizing adaptation of legal institutions and ideology to neoliberal reforms).

⁸ John Finnis, *Natural Law and Natural Rights* 274.

reflects a strong and specific methodological position should remind us that talk of the rule of law always involves both some particular political and institutional occasion and some background theory of the right way to think of law in general. This variation is the starting point for possible generalization and distinction, not reason to give up on generalization and distinction.)

This essay addresses the relationship between the rule of law and democracy. It argues against the apprehension that these two principles are perennially at odds, law a seat of reason and principled judgment while democracy is a vehicle of bare decision, often selfish, impulsive, ignorant, or all of these. These widely aired and professionally influential stereotypes ask more of law than it can provide while expecting less of democracy than it offers.

At the same time, it is an equal and opposite mistake to treat democracy and the rule of law as harmonious, as coming to the same thing, or to assert, as one prominent theorist has, that the rule of law is the chief benefit that democracy secures.

Democracy and the rule of law aim at the same thing in quite different ways. Their shared aim is to make the organized legal power of complex modern societies relatively acceptable to a reflective person who values autonomy. They are normative principles that bear on the legitimacy of a legal regime by pressing it toward accountability to those whom it governs, who have their own interests, attachments, and convictions, who disagree and even clash intensely, and who must nonetheless live with a shared and binding set of institutions and rules.⁹ Yet these two principles address such people in quite different registers: democracy addresses *citizens*, authors (or at least authorizers) of laws, while the rule of law addresses *subjects*, takers of law who confront its affordances and constraints as facts to be navigated, or as rules of validity to be interpreted and applied, but in neither case as products of the will and judgment of the same citizens who now confront them.¹⁰ In a democracy, every active citizen occupies both roles, often simultaneously. (Nearly everyone everywhere is a subject, and all subjects have an interest in the rule of law; but not all subjects are invited, even notionally, to author or authorize the laws they live under.) In this sense, the two principles are complementary; but this does not mean that they amount to anything like the same thing.

The rule of law is entirely possible without democracy, but democracy is impossible, indeed, unintelligible without a certain kind of rule of law. This is so because law specifies the meaning of democracy's key terms: who constitutes the *demos*, or people, and when the people may be said to have spoken.¹¹ These democratic cornerstones are not natural kinds or facts, and

⁹ See Jeremy Waldron, *Law and Disagreement* 221-27 (1999) (arguing that attribution of rights implies a respectful view of human agency and capacity that is also shown respect by, and institutionally embodied in, democracy).

¹⁰ See Richard Tuck, *Passive and Active Citizens: A Defense of Majoritarian Democracy* 44-69 (2024) (elaborating a distinction between "active" citizenship, the posture I am associating with "citizens," and "passive citizenship," the posture I am associating with "subjects." Either a citizen or a subject, in my sense, may occupy at different times both of H.L.A. Hart's famous standpoints, the "internal" and "external" perspective on law. Hence there is no necessary connection between these two distinctions, though I find it plausible that citizens might be more likely than subjects to identify with the law in ways that would motivate them to take up the internal perspective. See H.L.A. Hart, *The Concept of Law* (rev'd ed. 1972) 88-91 (setting out internal and external perspectives on law).

¹¹ See Jedediah Purdy, *Two Cheers for Politics* 201-211 (2022) (on the necessary construction of the people and the terms of their action).

come into being as political facts only through the articulation of law. The activity of democracy is thus itself dependent on the *democratic rule of law*. The law concerned here is specifically political, often but not exclusively constitutional. Democracy depends on the coherence, prospectivity, publicity, feasible compliance, and so forth, of this body of law, and on the fidelity of officials to this law as a valid guide to action. Failure in these qualities can threaten the viability of a democracy, highlighting the depth of its dependence on the democratic rule of law.

Both concepts are essentially contested and so may be specified in a variety of ways depending which of their constitutive features one emphasizes. In this essay I rely on a version of democracy that I have defended elsewhere, as a mode of binding political decision that puts the last word in the majority vote of a community of equals. This should not be a terribly controversial meaning of democracy, but it does stand in contrast to influential interpretations that subordinate majority decision to substantive judgments (say, by courts or, compatibly, in entrenched constitutions) or sideline it in favor of non-majoritarian institutions that are advertised as more representative or more competent than the majoritarian alternatives.

In Part I, I set out four received ideas about the relationship between the rule of law and democracy and advance the initial version of my own argument: that law is a transcendental condition of democracy, and when law serves this role well, a specific version of the rule of law is present. In Part II, I step back to consider the moral and political appeal of the rule of law by examining the thought of two very different eulogists: E.P. Thompson and Michael Oakeshott. In Part III, I go further into the relationship between the rule of law and democracy, arguing for the distinctness and partial complementarity of the standpoints of subject and citizen. I then return to the four “received” approaches to the rule of law and democracy, revising each in light of what I have argued. Part IV then turns to Jonathan Gould’s fascinating proposal for a “rule of public law” and argues that the concepts Gould develops can help to anchor public decisions in a creditable legal morality, but only where the democratic rule of law is also present. In Part V, I argue that American democracy suffers from deficiency in the democratic rule of law in three dimensions of canonical rule-of-law values: coherence, prospectivity, and feasibility. I illustrate these points with discussion of, respectively, the temporal and jurisdictional fragmentation of “the people,” the silence of existing law on the structure of federal constitutional conventions, and the near-impossibility of amending the national constitution. A brief conclusion follows.

I. The Rule of Law and Democracy

The rule of law and democracy are easily styled as opposites. Democracy, in particular, is easily cast as a threat to the rule of law. This is so because, according to two standard formulations of the rule of law, democracy intrinsically tends to violate it. In Part I.A., I set out these two formulations alongside two others, one more conciliatory, the other deflationary.

A. Four Received Approaches

In the first formulation, what defines the rule of law is that the ruler is bound by law as much as the subjects are. This is the idea whose slogans come from Aristotle’s proposal that rulers should be understood as ministers of the law, not its promulgators, and John Adams’s

contrast between being ruled by law (a condition of liberty) and by men (tyranny).¹² Yet democracy reposes ultimate authority in popular will, spurring many of its critics to denounce it as a form of popular despotism—the rule of men *par excellence*. We can associate this idea with Alexis de Tocqueville, Francis Lieber, Walter Lippmann, and Friedrich Hayek, among others.¹³ The worry seems to be that these willful majority decisions may be ad hoc, mutually contradictory, motivated by dubious passions such as animosity or revenge, and (part of what makes them mutually contradictory) aimed at a variety of specific beneficiaries and victims. If these qualities are to be restrained in favor of principles such as integrity and impersonality, the reclamation may require heroic effort (rather as Holland has historically held back the sea), such as the erection of constitutional principles with supermajoritarian amendment thresholds, administered by unelected judges.¹⁴ In the heroic (if less immediately practical) vein, a Herculean theorist can even redefine democracy as being inherently constrained by certain rule-of-law principles, and thus as containing its own self-limitation.¹⁵ But I think such redefinition is best understood as symptom, not relief, of the worry that democracy puts persons under the rule of other persons without recourse to some authentically impersonal source of authority. And this, the view goes, makes democracy dangerous, especially to the rule of law.

In the second formulation, what defines the rule of law is a certain neutrality associated with formalism. This idea has fewer slogans to hand than the first, but we can know it partly by what it rejects: a view of law as instrumental, a tool to achieve particular ends. Figures such as Michael Oakeshott and Friedrich Hayek (again) have advanced the conception of the rule of law as based on a system of rules that Oakeshott called “adverbial,” specifying not ends but means, the forms of action (such as contract) rather than the situations the action is meant to bring about.¹⁶ A system of law that is at once formal and neutral in this manner, in which formalism is

¹² See John Adams, Boston Gazette No. 7 (1774); Aristotle, Politics 1282b (famously asserting that those who rule at any time should be only “guardians and ministers” of the law. Aristotle noted at the same point that the power to reform the law was an essential part of rule, and seemed to envision a political order in which citizens ruled by turn, with each governing group taking the existing law as the starting point of its rule.

¹³ See Alexis de Tocqueville, Democracy in America 250–51 (trans. George Lawrence, ed. J.P. Mayer) (1969) (“What is a majority, in its collective capacity, if not an individual with opinions, and usually with interests, contrary to those of another individual, called the minority?”); Francis Lieber, On Civil Liberty and Self-Government 18 (warning against “the idol of ... popular despotism,” 250 (denouncing “the people-despot ... a dictatorial multitude”) (3rd ed., ed. Theodore D. Woolsey) (1874); Walter Lippmann, The Phantom Public 38–55 (1930) (arguing against “the dogma of democracy” [38] that there is no such thing as a public, just a series of more or less emotional, associative, and otherwise irrational impulses artificially consolidated into a majority of votes); Friedrich Hayek, The Constitution of Liberty 166–183 (Ronald Hamowy, ed. 2011) (1960) (arguing that democracy may easily violate essential liberal principles and should be regarded at best as a limited qualified means to promoting liberal order). See generally John Dunn, Breaking Democracy’s Spell (2014) (describing democracy as a mainly mythological idea that does not deserve its status as moral and political shibboleth).

¹⁴ See, e.g., Constitution of the United States, Art. V (setting a series of supermajority requirements for constitutional amendment).

¹⁵ See Ronald Dworkin, Freedom’s Law: The Moral Reading of the American Constitution 1–35 (setting out an argument to this effect). For a philosophically ambitious version that equates the rule of law with substantive human rights, see Jurgen Habermas, “On the Internal Relation Between Rule of Law and Democracy,” 3 European J. Phil. 1 (1995).

¹⁶ See Michael Oakeshott, “The Rule of Law,” pp. XX–XXX in Oakeshott, On History and Other Essays (XXXX) (This argument is discussed in more detail in II.B, below); Friedrich Hayek, 1 Law Legislation and Liberty 94–123 (1973) (arguing for a vision of law as neutral among purposes because formal in a specifically market-making way).

the instrument of neutrality, is said to respect the independence of persons in the sense that the law does not tell them what to do, only provide the means by which they may seek to do what they think best.

In this second formulation, democratic legislation is usually purposive: it seeks to bring about a certain state of affairs. Hence it is non-neutral, in the sense that it tells people what to do, how to direct resources, etc. Compare the law of contract with, for instance, the Endangered Species Act, which issues a series of prohibitions on conduct, or the Inflation Reduction Act, which directs huge amounts of public revenue to sectoral supports in favor of an economy-wide transition to a different energy system.¹⁷ (The latter example does highlight that many laws are purposive without being coercive, qualities that some formalists, such as Hayek, have tended to run together polemically.) And, the argument usually goes, democracy's purposiveness tends to grow more intense through the simple force of human appetite and ambition. Many of us imagine states of affairs that we would like to bring about, and democratic government suggests a way to do it: pass another law!

These two accounts represent variations on a pair of images: of democracy as a kind of unbounded, appetitive political regime (at least in potential), and of the rule of law as implying a broadly liberal brake on democratic appetites (or at least on their most drastic and systemic consequences).¹⁸ This broad outlook runs back to Plato, who gave iconic expression to both the criticism of democracy as a regime of unbounded appetite and the appeal to law as a source of autonomous, apolitical principle.¹⁹ The first formulation has institutional and theoretical affinities with liberal constitutionalism, a tradition that seeks to establish authoritative limits on what a state may do (even when, as with John Locke, that state is not assumed to be democratic).²⁰ The second formulation finds more affinity with a neoliberal focus on markets as an ostensibly non-coercive mode of social coordination, not a brake on the state, but a specific mode of deploying its power through a legal form understood to be (again) neutral among the projects people might arrange to pursue through it.²¹

These two accounts treat democracy and the rule of law as in opposition, or at least significant tension. A third account portrays the relationship in a more conciliatory way. It treats the *prima facie* opposition between democracy and the rule of law as relaxed, if not exactly resolved, by an observation along these lines: democracy and the rule of law are both means of resisting arbitrary power, and in that sense they can be complementary.²² On this account, a free

¹⁷ See 16 U.S.C. sec. 1531 et seq. (Endangered Species Act); Inflation Reduction Act of 2022, 136 Stat. 1818.

¹⁸ For a critical review of theoretical hostility to democratic lawmaking, see Jeremy Waldron, *The Dignity of Legislation* 7-35 (1999) (surveying views that regard legislation as an inferior form of law or even as antithetical to law, in part because of skepticism about the motives of lawmaking).

¹⁹ See Plato, *The Republic* 221-49 (Book VIII) (Allan Bloom, trans. 1968)

²⁰ See Ronald Dworkin, *supra* n. __ [Freedom's law, same citation]; John Locke, *Two Treatises of Government* 406-28 (Peter Laslett ed., 1960) (on the legal limits on government—assumed to be monarchical—whose violation lead to the dissolution of that government).

²¹ See David S. Grewal & Jedediah Purdy, *Introduction: Law and Neoliberalism*, 77 *L. & Contemp. Probs.* 1 (2014) (giving this characterization of neoliberalism); Hayek, *supra* n. __ [same citation as from *Con of Liberty*]

²² See Martin Krygier, "Democracy and the Rule of Law," pp. 406, 422-24 in *The Cambridge Companion to the Rule of Law* (Jens Meierhenrich & Martin Loughlin, ed., 2021) (presenting this argument and noting exemplary advocates of it).

society needs formal institutions and procedures of state power (roughly, the rule of law) and also needs means of popular feedback and control (roughly, democracy) to keep the state acceptably close to widely shared sentiment about what it should and should not do.²³ This idea offers each side of the democracy-and-rule-of-law pairing as the solution to a widespread worry about the other. If democracy is too willful and erratic, maybe the rule of law gives it guardrails in which citizens can repose some trust. If the rule of law is, as H.L.A. Hart famously argued, entirely compatible with terrible regimes, maybe democracy will knock it back onto a socially acceptable track.²⁴ In a strongly conciliatory mood, one might even think the complementarity so deep (if asymmetric) that the rule of law is “the primary good that [democracy] offers.”²⁵ That is, democracy often limits the scope for abuse of power, and where a people succeeds in keeping state power in line, the resulting arrangements tend to resemble or encompass the rule of law.

A fourth account suggests that there might be not all that much to say about the relationship between democracy and the rule of law.²⁶ Each of those principles is one among a small set of major public values prominent in modern, liberal societies, alongside other touchstones such as human rights, social justice, and national security.²⁷ Each of these in its own way forms major features of the moral landscape of modern public life, and they are at once sufficiently distinct *and* sufficiently overlapping that we should not seek a unified account of their interrelations. Part of the reason for this diffident approach to the question of contrasting or integrating major principles is a distinct claim: that these principles are themselves each “essentially contested,” comprising various dimensions that may, in turn, be interpreted with different inflections or with greater or lesser emphasis.²⁸ We have already seen one example in the different conceptions of “rule of law” that emphasize, respectively, the legal control of the sovereign and the putative neutrality of legal formalism. For another canonical example, democracy can look rather different depending whether one emphasizes majority rule, equal political rights, or liberal procedures ensuring open political contestation, to the degree that each can significantly efface the others.²⁹ From this perspective, general assertions about the

²³ When I say that this is the common sense of the time, I have in mind for instance the influential argument of Daron Acemoglu and James Robinson in *The Narrow Corridor* (2019) that “state” and “society” must “compete” perennially for liberty to arise and survive in a complex society.

²⁴ See Hart, *supra* n. __ [Concept of Law] at 202 (describing Lon Fuller’s “minimum moral content of law” as “compatible with great iniquity”).

²⁵ Krygier, *Democracy and the Rule of Law*, in *The Cambridge Companion to the Rule of Law*, 406, 422 (Martin Loughlin and Jens Meierhenrich, eds.) (2021).

²⁶ See Richard Fallon, “*The Rule of Law*” as a Concept in Constitutional Discourse, 97 *Columbia L. Rev.* 1, 55-56 (1997) (“Invocations of the Rule of Law are sufficiently meaningful to deserve attention, but today are typically too vague and conclusory to dispel lingering puzzlement” as to which of several dimensions of the idea we might be invoking, each of which involves its own controversies of definition and application).

²⁷ See Jeremy Waldron, [Thoughtfulness and the Rule of Law,] *supra* n. at 235-40 (setting out these dimensions of overlapping shared public value).

²⁸ See W.B. Gallie, *Essentially Contested Concepts*, 56 *Proc. Aristotelian Soc.* 186 (1956) (presenting democracy as one example of a concept whose key elements are in contest contestation); Fallon, *supra* n. __ [Rule of Law] at 6 (connecting his somewhat negative conclusion about specifying the meaning of the rule of law with a characterization of that concept as essentially contested); Jeremy Waldron, “The Rule of Law as an Essentially Contested Concept,” in *The Cambridge Companion to the Rule of Law* 122-36 ((Martin Loughlin and Jens Meierhenrich, eds.) (2021) giving a somewhat more optimistic view of the prospects for getting meaning from even an essentially contested concept).

²⁹ See Gallie, *supra* n. __ (so emphasizing).

relationship between concepts on the scale of “rule of law” and “democracy” tend to obscure more than they reveal, because they rely on specifications of essentially contested concepts. And the more explicit such specifications are, of course, the more susceptible they are to revision that changes or relaxes the relationship. Taken to its strongest formulation, this account would support its own sweeping claim, a chiefly negative one: that accounts of the putative relationship among central public values tend either to polemic (where specification of the contested value is strong) or to bemusement (as one meditates on the internal diversity of each value).

I think there is reason to attend to each approach. I have already implicitly put the fourth, deflationary approach to use in this essay in pointing out how different specifications of the rule of law produce or highlight different tensions with democracy. To my mind, the real lesson of this approach is not deflation but concentration on more specific institutions, agendas, and conjunctures than the broad concepts allow. To concentrate on those is the point (or one version of the point) of this volume’s attention to “the politics of the rule of law.”³⁰

B. Law as a Transcendental Condition of Democracy

Having paid respect to deflation and specification, I do think there is something important and general to say about the relationship of democracy to law. I think too that this relationship, once understood, casts light on other claims about how democracy and the rule of law interact. I even think that the general point I want to make about democracy and law suggests a distinctly democratic specification of the rule of law.

Law is a transcendental condition of democracy, in the specific sense that democracy is inconceivable without prior concepts that are furnished by law.³¹ As we shall see, this transcendental dependence implies that while it is perfectly possible to have the rule of law without democracy, it is not possible to have democracy without certain contributions from law that, I shall argue, point toward what it should mean to speak of “rule of law” in a democratic register.

But first to specify what it means to call law a transcendental conditions of democracy. *Demos + kratos* means rule by the people, and to give workable meaning to that slogan it is necessary to specify both who counts as “the people” (*demos*) and how to know when they have issued a decision, or ruled (*kratos*). Who may vote, what counts as voting, in which jurisdictional bounds is a majority tallied, and what are the possible consequences of any particular majority? For instance, in most U.S. jurisdictions resident non-citizens and the incarcerated cannot vote, and in all states tweeting is not voting, no matter how clearly it gives public notice of an expression of support.³² A majority of votes in a congressional district selects a representative and a majority in a state selects a senator. Popular majorities cannot pass national laws, but only concurrent majorities of the two houses. An election for the House lasts two years, one for the Senate six years, and the enactment of a law forever unless repealed or superseded. Such rules

³⁰ [Cite back to Intro once it is written]

³¹ See Charles Taylor, *Philosophical Arguments* 20-34 (1995) (limning the concept of transcendental argumentation and making the case for its validity).

³² See Christopher Uggen et al., *Locked Out 2022: Estimates of People Denied Voting Rights* (2022) (summarizing state laws on voting by the incarcerated and those previously convicted and estimating their effects) (available at <https://www.sentencingproject.org/reports/locked-out-2022-estimates-of-people-denied-voting-rights/>);

are in some cases set by constitutional text, which, in turn, lasts until revised by the exceedingly demanding process of constitutional amendment.

In enumerating these familiar rules, I don't mean to endorse them as specifications of democracy, nor (yet) to criticize them along the same lines, but to indicate that without specification of this kind, there is no content to the assertion that the United States engaged in democratic self-rule. Democracy takes its form from law. It must do so. In the absence of such specification, democracy becomes a euphemism for competing, often cacophonous claims to be or represent "the people." So the rule of the people is always the rule of a certain form of law.³³

Now, there is a sense in which this point only specifies for democracy a more general quality of politics: that it needs "rules of the game" to get off the ground, and we may call those rules "law." Indeed, these rules, defining the location and nature of political authority in any polity, were long the primary political meaning of "constitution," a term now more usually annexed to written fundamental law.³⁴ I think this point about rules of the game is worth making, partly because the priority of rules to politics is underappreciated in a time when the discursive, prefigural and multitudinous dimensions of political action have been valorized to the point of imagining that they could constitute a politics in themselves.³⁵ Recalling the priority of rules to politics helps us to see why these aspects of politics cannot be sufficient to make up democracy except as a covert redefinition that robs "democracy" and, indeed, "politics" of much of its importance. But I also think that democracy's dependence on law goes further than the need for rules of the game, and that the point cuts deeper for this reason.

Let me illustrate the point through a simple example. As political thinkers have long emphasized, sovereignty, the power to rule, is always an artificial quality, not simply an attribute of a natural person. To make a queen, you need both a natural person and the attribution of sovereignty to her, and the latter will be in any modestly complex society a legal attribution.³⁶ But a queen, being a natural person, may exercise her sovereignty quite organically, taking actions and making pronouncements that are straightforward to observe and understand, even though their political consequences are legally constructed and specified. Rulers were long thought to have the power to cure scrofula through physical contact, "the queen's touch," and the very possibility highlights that you can walk up to a monarch, feel her touch, hear her voice give

³³ Ronald Dworkin makes this point in calling democracy a "procedurally incomplete form of government." Dworkin, *Freedom's Law: The Moral Meaning of the American Constitution* 33 (1995).

³⁴ See Jedediah Purdy, *Two Cheers for Politics*, *supra* n. ___ at 65-70 (summarizing this history); see generally Linda Colley, *The Gun, the Ship, and the Pen: Warfare, Constitutions, and the Making of the Modern World* (2021) (on the idea and practice of a constitution across time and place).

³⁵ See generally Michael Hardt and Antoni Negri, *Assembly* (2017) (setting out a sophisticated version of the politics of horizontal and "leaderless" movements; Vincent Bevins, *If We Burn: The Mass Protest Decade and the Missing Revolution* (documenting the influence of this set of ideas among recent mass movements and linking it to those movements' failure to achieve lasting political change).

³⁶ See generally Ernst Kantorowicz, *The King's Two Bodies* (1957) (elaborating the theory of the monarch as being at once a natural, embodied person and the embodied sovereignty of the realm); Thomas Hobbes, *Leviathan* 111-54 (Cambridge University Press ed., Richard Tuck, ed., 1991) (1651) (arguing that sovereignty is necessarily artificial and may be attached to a variety of natural persons).

a command.³⁷ The same is true with, say, a council of oligarchs (such as the Supreme Court, some might say), although they will, unlike the monarch, need some voting rule to resolve disagreements as to what they should pronounce.

But what could be “the people’s touch?” and where could you hear their voice? *Vox populi vox legis*, but how do you know they have spoken? *Vox legis vox populi*. That is, democracy is nonsense without a legal account both of *who* the people comprises and *how* the people may act. By “who” I don’t just mean those who hold citizenship or the vote, important as those legal specifications are to this question, but also in what procedures we may say that “the people” is present at all and has the capacity to act. Millions of the people in the street, tens of millions posting a meme, are certainly socially relevant facts, but in the United States, “the people” gather directly only for elections and in constitutional conventions, and act through representatives at all other times. Although those more diffuse and organic actions (marches, memes) may move one’s representatives or fellow citizens (as a pamphlet or plea might move a sovereign), only the narrower, legally constituted kind of action can of itself produce consequences for the terms of common life, the operating instructions of the state, and so forth. The *demos* is present only in certain legally specified procedures, and only through certain outcomes of those procedures can we say that *demos* is joined to *kratos*, that is, that the people has acted to exercise its rule.

C. Democracy as a Rule of Law

There is a risk here of equivocating between *law* and *rule of law*. The latter, the occasion for this essay, comprises a long tradition of argument about what Lon Fuller called “the inner morality of law,” usually elaborated through an account of certain formal regularities in the shape of official power.³⁸ Mere “law” may seem simply to designate a broad range of commands and technologies of rule—precisely the sorts of things some theorists have wished to warn against by contrasting them negatively to “the rule of law.”³⁹ Here, I am persuaded by Jeremy Waldron’s argument that the contrast between “rule of law” (liberal, good) and “rule by law” (authoritarian, bad) is overstated and risks confusion: we should not call *law* every use of such state apparatuses as police, administrative agencies, courts, and incarceration; and where these are actually used according to general and known rules implemented in consistent fashion, deserving the term “law,” then lawfulness imposes some meaningful constraints on the state, even though these constraints do not amount to, and may fail to protect, liberal individual freedoms, democratic rule, or other important values.⁴⁰ So to say that law makes democracy intelligible is also to say that, when democracy is up and running, key values of generality, prospectivity, publicity, and the like are present in the very fabric of rule. If they were not present, democratic rule would become impossible and, indeed, unintelligible: we could not do it, and we could not know what we were referring to when we invoked it. Democracy *is a rule of law*.

³⁷ See generally Marc Bloch, *Royal Touch: Sacred Monarchy and Scrofula in England and France* (1973) (on the development and meaning of the “royal touch”).

³⁸ See Fuller, *supra* n. __ [that note encompasses the portion of his book titled, and devoted to, “The Inner Morality of Law”]

³⁹ See *supra* n. __ [on Dicey, Hayek, and Oakeshott].

⁴⁰ See Jeremy Waldron, *supra* n. __ [on the “much-maligned preposition”]

II. The Appeal of the Rule of Law: Two Canonical Visions

Later in this essay, I'll say more about what comes out of the democratic conception of the rule of law: what questions it poses, and what light it casts on some familiar assertions about rule of law and democracy. First, though, I want to enrich our picture by considering some (rightly) iconic, and very different, accounts of this issue, those of E.P. Thompson and Michael Oakeshott. I think these accounts get behind the analytics of "rule of law," the lists of procedural features, to show us something about the human stakes with which it has been associated. Equipped with some sense of why and how the concept matters, we can better understand the values that both it and democracy serve, and so the shape and force of both their complementarity and their tension. All of this, in turn, helps to fill out the significance and value of the democratic conception of the rule of law.

A. E.P. Thompson's Unqualified Human Good

The rule of law "is an unqualified human good," Thompson famously wrote.⁴¹ Thompson, of course, was not a legal theorist but a student of English popular movements and a relentless critic of his country's ruling classes and the stratagems (including legal stratagems) on which their rule relied. As skeptics have pointed out, not always, charitably, *Whigs and Hunters*, the study that Thompson's famous words concluded, did not lend clear support to his encomium. The book's exploration of certain 18th-century game laws and the poachers they targeted details what Thompson called "the law as a pliant medium to be twisted this way and that by whichever interests already possess effective power"—condemning certain kinds of poachers to the gallows and ensuring courts showed them no mercy and questionable fairness.⁴² Yet Thompson concluded with a statement of determination to reject "any slide into structural reductionism," the view he associated with Althusserian Marxism, in which "the rule of law is only another mask for the rule of a class."⁴³

Thompson advanced two related claims about what "structural reductionism" left out of its picture of law. First, because law legitimates power specifically through the claim to treat likes alike, to pay equal heed to the valid claims of all, and so to bring many kinds of power into a normative scheme of formal fairness, the mediation of power through law excludes certain kinds of nihilistic shrug: "We did it because the strong do what they can, and the weak bear what they must," or, "We did it because we seek to use power to serve our friends and punish our enemies." Courts, police, and legally empowered private parties can, of course, use power in the ways these phrases conjure; but insofar as law's institutions are embedded in the legal demand for reasons that comport with some basic standard of fairness, such phrases are alien to a *legal* account of these actions. Agents of the law cannot—even as a tool of class domination—ask anyone to accept these responses as a last word. And so, at the very least in rhetoric, imagination, and professional and institutional identity, the law stands between the person and the prospect of entirely unaccountable power. Thompson denied, moreover, that this could be always and only rhetoric: people are neither fools nor helpless, and a legitimating practice organized around claims of justice must at times *be* just.⁴⁴

⁴¹ E.P. Thompson, *Whigs and Hunters: The Origins of the Black Act* (208) (1975) (Breviary Stuff ed., ___).

⁴² *Id.* at 205.

⁴³ *Id.* at 206, 203

⁴⁴ See *id.* at 205 ("The essential precondition for the effectiveness of law, in its function as ideology, is that it shall display an independence from gross manipulation and shall seem to be just. It cannot seem to be so without

Thompson's second point was that, partly because of these characteristics of law, there had grown up "a tremendous capital of human struggle" in which the meaning of the law was "a central area of conflict."⁴⁵ Launched partly as a shield against royal absolutism, then articulated as the very ligature of gentry power, and permeating a sometimes conservative and sometimes radical folk culture full of claims for local, traditional, or smallholder rights, the ideology of law's rule became a resource for effort to shape organized power according to moral limits. As Thompson memorably put it, if the rule of law was a mask, it was held aloft at the vanguard of ten thousand masked supporters.⁴⁶ At some point in the accretion of human effort, sacrifice, and commitment, especially in terms that make a community or a movement, the ideology contributes to goals, strategies, and reasons and may be integral to how a conflict comes out and to the resolution's meaning for contenders from competing camps.

In this formulation, the rule of law casts everyday organized power as *answerable* to, indeed in some sense as *belonging to* the humblest person who may be subjected to it. On this view, it would mark a terrible change in the nature of power for law to become simply an instrument for the domination of some persons by others. At least in a culture infused with the idea of the rule of law, contests over the use of power will advance competing accounts of what it means for organized power to treat fairly everyone who comes before it.

To borrow a phrase from Thompson's contemporary Raymond Williams, a structure of feeling attends invocation of the rule of law.⁴⁷ This structure of feeling is a marriage of alienation from power to identification with power. Its paradigm experience is a sense of injury that is also a sense of injustice *by the standards of the same logic of power that has done the harm*. The feeling is not simply, "This system exists to hurt people like me; that is its nature," but also (if not instead): "I have standing in this system: I am a person whose claims it must respect, whose claims are part of its architecture and meaning." This structure of feeling may correspond as well to a specific social position: that of the person who lacks power, at least relatively speaking, but does not entirely lack for a sense of belonging to the social order, nor for a sense that the social order *should* belong to them.

There is a very deep affinity here between the rule of law and democracy. Each one involves an idea of the equal and independent importance of persons as expressed the way in which they should be regarded by the state and, in certain institutional contexts and legal relationships, by one another. In insisting on certain kinds of treatment, one is also seeking to be

upholding its own logic of criteria and equity; indeed, on occasion, by actually *being* just.") Justice here seems to be a matter of impersonality and generality that resonates, from a different class perspective, with Jeremy Kessler's account of merchants and other participants in a rising commodity economy finding a "rule of law" in the common law. See Kessler, *supra* n. ___ at.

⁴⁵ See Thompson, *Whigs and Hunters* at 206.

⁴⁶ See *id.* at 206 (referring to "ten thousand masked supporters" in English commoners' movements), 208 ("a million masked supporters" in the movement for Indian independence"). On the role of legal concepts in the development of Indian independence, see generally Madhav Khosla, *India's Founding Moment: The Constitution of a Most Surprising Democracy* (2020).

⁴⁷ Williams uses the phrase in many places throughout his work. See Stuart Middleton, *Raymond Williams's "Structure of Feeling" and the Problem of Democratic Values in Britain, 1938-1961*, 17 *Modern Intellectual History* 1133 (2020) (tracing William's use of the phrase in some of his major works).

less alienated from power and authority, not by artificially forcing one's mind into alignment with them, but by bringing them more nearly into line with one's own sense of the fairness suited to a community of equal and distinct individuals.⁴⁸

Ronald Dworkin, Jeremy Waldron, and others have pointed out that there is an affinity between the picture of the person as a rights-bearer and the picture of a person as a democratic citizen. In each case, the person is imagined as having qualities of judgment and mature autonomy that make it appropriate for them to enjoy a domain of free action (rights) and to have a share in the decisions of their polity (democracy).⁴⁹ My argument here is a variant on that one: that the subject of the rule of law and the subject of democracy have much in common in the ways their key civil capacities and interests are imagined. As we shall see, one way to approach the relationship between the two clusters of principle is by way of understanding how they address the same, or closely related, human qualities and predicaments—in ways, however, that bring them into tension and conflict as well as often as mutual support.

B. Michael Oakeshott's Roman Redoubt

We get a very different mood (and tone) from Michael Oakeshott's essay, "The Rule of Law." Oakeshott was, like Thompson, a twentieth-century student of the past (in his case chiefly of the history of ideas) for whom history always bore on the present. Their different loyalties were explicit: Thompson was a person of the democratic far left, associated for a time with the British Communist Party before its Stalinism repelled him beyond its ranks, and in and out of favor with the *New Left Review* crowd.⁵⁰ Oakeshott gave the keynote address at the twentieth anniversary gala of the *National Review*, the vehicle of American conservatism that William F. Buckley founded in 1955.⁵¹ But what is interesting here is first to cut against the grain of these obvious contrasts, because there are also affinities, which show us something.

For Oakeshott, the rule of law is "a mode of moral association exclusively in terms of the recognition of known, non-instrumental rules (that is, laws) which impose obligations to subscribe to adverbial conditions in the performance of the self-chosen actions of all who fall

⁴⁸ I mean what I say here to be compatible even with quite a minimal characterization of the rule of law, one which understands it not as importing substantive morality or a robust idea of equality, but simply as imposing a certain standard of non-arbitrariness on the use of power. See Joseph Raz, *The Authority of Law* 210-29 (1979) (arguing for such a conception of the rule of law).

⁴⁹ See Dworkin, *Freedom's Law*, supra n. ___ at 21-33 (arguing that democracy can present a justifiable mode of political decision only where it incorporates a deep commitment to equal concern and respect for each member of the community, an idea Dworkin associates with both the coherence ("integrity") of law and with the protection of rights); Jeremy Waldron, *Law & Disagreement* 221-23, 282-98 (arguing that equal respect for the autonomy and reasoning capacity of each political member supports democratic rather than judicial procedures for resolving central public questions).

⁵⁰ See *E.P. Thompson*, at Britannica.com (<https://www.britannica.com/biography/E-P-Thompson>) (on Thompson's political stance and his 1956 break with the British Communist Party following the Soviet invasion of Hungary); Perry Anderson, *Arguments Within British Marxism* 16-59 (1980) (comprehensively attacking Thompson's work from the Marxian left).

⁵¹ See Perry Anderson, *High Jinks at the Plaza*, *London Rev. of Books*, Oct. 22, 1992 (on Oakeshott's address to celebrants of the *National Review*; Anderson, *The Intransigent Right at the End of the Century*, *London Rev. of Books*, Sept. 24, 1992 (detailed critique of Oakeshott's politics).

within their jurisdiction.”⁵² A typical Oakeshott definition does more to consolidate his own argument than to open it up to the common reader, and this one characteristically requires some unpacking. It is, to begin with, not a definition of one regime-type among a set of mutually exclusive alternatives, but rather a way of abstractly crystallizing a mode of association that is sure to overlap and even be interbraided with others within any social world.⁵³ People may relate to some members of their society in terms of the rule of law, to other members of the same society in other terms, and at one time or another to the same other persons in several modes.

The rule of law for Oakeshott is a marriage of two modes of association, the *moral association* and the *game*. A moral association is defined by certain conditions that are obligatory for participants in their relations to one another, in which those conditions are not strictly and stably distinguishable from rightness.⁵⁴ This identification with rightness means that there tends to be deep disagreement over what the requirements are, and over (the other side of the same coin) whether any putative requirement is binding.⁵⁵ Both types of disagreement are rooted in the underlying disagreement over what is right, which permeates the terms of the moral association itself. The rule of law, by contrast, shares a certain hermetic quality with games, associations solely and exclusively in terms of the recognition of rules.⁵⁶ In games, the rules must be authoritative, or the game cannot go on. This is what it means to say that the rule of law is defined “exclusively in terms of the recognition of ... rules.” (supra) Although the subjects of law will be neither oblivious nor indifferent to the goodness of rules, a system of rule of law distinguishes clearly between these moral qualities and law’s validity *as law*, which is a positive matter of its arising from the right source, a sovereign lawmaker.⁵⁷

So far this may seem to boil down to positivism; certainly, it recalls H.L.A. Hart’s famous account of the “concept of law” as entailing a sharp distinction between legal validity and moral rightness.⁵⁸ A more distinctive aspect of Oakeshott’s “rule of law” is its contrast with what he calls “transactional” relationships and the “enterprise associations” that expand such relationships to institutional scale. In transactional associations (of whatever scale), people seek and exercise power in pursuit of substantive purposes, which may equally well be selfish or elements of a cause that is more elevated, or at least seems so to its pursuers.⁵⁹ Transactional associations are defined by their aims, succeed or fail in those terms, and may end on the

⁵² Michael Oakeshott, *On History* 148 (Liberty Fund ed., 1999) (1983). This volume includes Oakeshott’s “The Rule of Law” in its entirety at pp. 129-178. Oakeshott develops many of the same concepts and categories at great and more esoteric length in *On Human Conduct* (1975), but on a careful reading of both, I feel confident saying that the longer treatment adds little or nothing to the theme of the rule of law.

⁵³ See Michael Oakeshott, *On History* at 129 (“relations between persons are apt to be contingent assemblages of a variety of different modes of association”).

⁵⁴ See *id.* at 144-48 (setting out the definition of a moral association).

⁵⁵ See *id.* at 147-48 (highlighting the incorrigible imprecision and central importance of actual convictions about right and wrong, such that a moral association can never also be an association in terms of rules).

⁵⁶ Oakeshott, *On History*, supra n. ___ at 136-39 (defining a game as an association exclusively in terms of obedience to rules)

⁵⁷ See *id.* at 149-50 (emphasizing that central to the rule of law is the capacity to discern the requirements of law based upon the criteria of their validity within the system).

⁵⁸ See Hart, supra n. ___ 181-207 (setting out what Hart took to be a comprehensive refutation of any view that law has a necessary connection with morality).

⁵⁹ Oakeshott, *On History*, supra n. ___ at 131-35 (characterizing this mode of association).

occasion of either failure or success, having in either case used up their purpose. By contrast, the laws comprised in rule of law may go forever and “are not designed to promote or hinder the pursuit of any substantive interest and ... consequently do not and cannot afford any of them recognition.”⁶⁰ In contrasting transactional associations with the rule of law, Oakeshott concludes that here “there is only Purpose, Plan, Policy, and Power,” which have “nothing whatever” to do with defining the rule of law.⁶¹

Here the political edge in Oakeshott’s formulation emerges. His contrast between a purpose-neutral set of laws to which individuals may fit their various projects and, on the other hand, a substantively oriented enterprise of planning and policy, closely tracks at a higher level of abstraction Friedrich Hayek’s distinction between the purpose-neutral rules of property and contract, which coordinate the free synchronizing of purposes, and the coercive activity of the planning state, which uses the language and sometimes the institutions of the law to undermine and replace law’s traditions of systemic neutrality and personal freedom.⁶² Indeed, Oakeshott allows himself a few polemical thoughts with a distinctly reactionary edge, asserting that the rule of law properly so called must be “insulated from the spurious claims of conscientious objection, of minorities for exceptional treatment and, so far as may be, from current moral idiocies.”⁶³

It would be trivial for the soi-disant critical legal theorist to muddle Oakeshott’s distinctions. If Oakeshott’s concept of the rule of law corresponds to anything in legal practice, the tradition of property and contract running down through Roman and common law is an excellent candidate. But can one really say, as Oakeshott asserts of the rule of law, that the laws of property and contract are not designed to hinder or advance any substantive purpose? To say so is to embrace *sub silentio* a whole social theory in which class differences become invisible and the accumulation of return on investment is either not a substantive purpose or not a characteristic product of this system.⁶⁴ Seen in a different light, legal principles such as property and contract are not an escape from Oakeshott’s “transactional associations” in which people use bargaining power to try to get what they want from one another, but are rather the building blocks of such associations.⁶⁵ Observers of many political and methodological dispositions have found undeniable that a system of property and contract assigns disparate power, and that the purposes of the powerful tend to dominate such systems.

But this is too quick and dismissive. Any argument about the rule of law has a politics, but that is different from its being reducible to its politics. Without forgetting its politics, let us take Oakeshott’s formulation in its best light. Let us try saying this: The theme of the rule of law responds to one of the central questions of social life. This question is: what kind of peace can a

⁶⁰ Id. at 149.

⁶¹ Id. at 135.

⁶² See supra n. __ [note on the market-oriented view of RoL]

⁶³ Oakeshott, On History, supra n. __ at 156.

⁶⁴ On the theme that approaches to law contain implicit social and even ontological arguments, see Jeremy Kessler, *Law and Historical Materialism*, 74 Duke L.J. (forthcoming) (arguing that much legal theory contains an implicit voluntarism that compares unfavorably with the historical materialist theory that he advances); Samuel Moyn, *Reconstructing Critical Legal Studies*, 134 Yale L.J., forthcoming (arguing for a systematic reckoning with legal thought’s need for and disowning of social theory).

⁶⁵ See, e.g., [supra n. 6] Robert Hale, *Freedom Through Law: The Public Control of Private Power* (1952) (setting out canonical account of the coercion-structuring character of private law).

reflective mind make with organized power, which is inevitable in complex society and at its limit always implies coercion? The question has attracted many kinds of answers, frequently in the register of political philosophy and adjacent areas of political economy.⁶⁶ Traces of these are evident in rule of law debates, but to ask about the rule of law is always to ask, in particular, whether something about the form of law, independent of the particular content, can recommend it to the reflective person who encounters in it the face of organized and official power.

Because the rule of law is not about outcomes but rather about forms (a distinction that is easy to vex but does still name a difference), it departs from one major tradition of justification, the consequentialist one that had utilitarianism as its nineteenth-century paradigm, wealth-maximization as its twentieth-century face.⁶⁷ Although market-modeled “rule-of-law indicators” have been prominent in development economics, to the extent that these are recommended as means to economic growth they share that quality with other policies that might be much more directive or expropriative: the connection with the rule-of-law form is only contingent.⁶⁸ If Oakeshott recommends identifying the rule of law with something like a system of property and contract, and opposes it to “planning” and coercive moral fads, the reason cannot be that a system of property and contract tends to increase social wealth more than competing system do: that would mean identifying the rule of law with a society-scale outcome-oriented “enterprise” or transactional association, exactly the sort of thing Oakeshott sets himself against doing.⁶⁹

Oakeshott’s reason has instead to do with the kind of person the legal system takes its subjects to be, and, correspondingly, how it addresses them. The rule of law, on his account, does not authorize the state to tell its members what to do or what to value: it recognizes them as standing on their own attachments, chasing their own projects, and it merely directs them as to *how* they may pursue these if they wish the coercion of the state to follow (in, for instance, enforcing contracts or protecting property rights). This is what it means to refer to law’s constitutive rules as *adverbial*, as Oakeshott does.

Because the rule of law addresses its subjects in this fashion, it simply sets out the terms of legal cooperation among persons who are equally idiosyncratic, each their own peculiar self. Among such persons, there is a limit to the sort of substantive moral satisfaction that any one person may expect to find in the law, because a regime that harmonized surely with my attachments and hopes would just as surely run athwart some of yours. Hence the distinction between law and justice, *lex* and *jus*, and the claim that the rule of law is a moral association

⁶⁶ See, e.g., Thomas Hobbes, *Leviathan* (1651) (contending that rational reflection on one’s foundational interest in survival leads to the conclusion that any constituted government deserves to command substantially unbounded authority); John Locke, *Second Treatise upon Government* (1690) (arguing that natural law supports substantive and procedural limits on the power of government, and a right to rebel against governments that violate those limits); John Rawls, *A Theory of Justice* (1971) (arguing that reflection on reasonable principles of fairness leads to a series of principles of justice binding on government and social order); Hayek, *supra* n. ____ (arguing for neutrality among substantive projects as the normative master criterion of political economy); Hale, *supra* n. ____ (arguing for private-law arrangements that enhance freedom overall).

⁶⁷ See Robert Cooter & Peter Rappaport, *Were the Ordinalists Wrong About Welfare Economics?* 22 J. Econ. Lit. 507 (1984) (tracing the development from the dominance of the first of these versions of consequentialism to the second).

⁶⁸ See Waldron, *supra* n. ____ (on the use of economic development goals in relation to “rule of law” criteria).

⁶⁹ See *supra* n. ____ - ____ and accompanying text (on this distinction in Oakeshott’s thought).

grounded simply in the recognition of adverbial rules, whose criterion is not their rightness but their jurisdiction. *Lex* is not arbitrary, because in practice it will be pushed and tugged toward uses its subjects can accept, but its validity does not depend on substantive rightness.⁷⁰

III. The Rule of Law and Democracy, Again

We are now in a position to consider the relationship between democracy and the rule of law at the level of the human interests they overlap in serving. In both cases, the perspective embodies a motivation to render the world less arbitrary, opaque, and frightening by bringing organized power toward some sort of reconciliation with the reflective mind of a person who wants to be able to look after his own affairs and sustain his own attachments. In some broad and modest sense, we can say that such a person wants to be free of certain kinds of avoidable interference, domination, or arbitrary impediment. In Part III.A, I reflect on the relationship between these standpoints. In Part III.B, I return to the “received approaches” from I.A to reassess them in light of what I have argued about democracy’s relationship to the rule of law.

III.A. Subjects and Citizens: Two Standpoints

Within their common concern for autonomy in relation to organized power, the rule of law and democracy offer sharply different standards. One way to crystallize this difference is in terms of the human perspective to which they are addressed: the subject of the rule of law is indeed a *subject* of rule, an order-taker. On most accounts, one could experience the rule of law in a variety of kinds of regimes—a multinational empire, an autocratic kingdom, an oligarchic republic, a technocracy whose leaders are appointed by independent institutions: in any of these, the point of the rule of law is *how* the regime’s rule addresses its subjects.⁷¹ Even in a democracy, the idea of the rule of law addresses a perspective that democratic subjects share with subjects of other regimes: the perspective in which, whatever the ultimate source of the regime’s legitimacy, in practice the regime is the source of the law’s rules and authorizations, the subject an addressee who receives the rules.

The idea of the rule of law injects a certain morality into this relationship between regime and subject. The characteristic rule-of-law requirements of publicity, stability, feasibility, coherence, non-retroactivity, and so forth all presuppose the subject as an intelligent planner of his own affairs to whom some account of ruling power is owed—to whom, we might say, ruling power must “make sense,” not by being altogether morally acceptable, but by hanging together in such a way that the subject can navigate it and *use* it to navigate his affairs.⁷² This political morality, however, is orthogonal to the political morality of democracy. The criteria of rule of

⁷⁰ Throughout his treatment of the rule of law, Oakeshott contrasts these terms. *Lex* refers to positive law, the set of rules in respect to which law may be analogized to a game. *Jus* refers to moral rightness or justice, whose inescapable relevance to the life of the law connects it with the category of the moral association.

⁷¹ Tellingly, in Lon Fuller’s canonical presentation of “the inner morality of law,” the problem with the absolute monarch Rex is that his decrees lack prospectivity, publicity, and so forth—not that they issue from an absolute monarch. See Fuller, *supra* n. __ [parable of Rex].

⁷² See Fuller, *supra* n. __ at 162 (“Every departure from the principles of the law’s inner morality is an affront to man’s dignity as a responsible agent.”); Mark Tushnet, *The Rule of Law from a Critical Legal Studies Perspective*, in *The Rule of Law* (Meierhenrich and Loughlin, eds.) at 328, 329 “[E]ven in its weakest form, the rule of law ... does express respect for people as reasoning (and reasonable) beings. That does seem an unqualified human good.”)

law are indifferent to the source of law, and democracy is at its heart an answer to that question: who rules, i.e., who is the author of the law?⁷³

Democracy, unlike the rule of law, addresses people not as subjects of rule but as rulers, authors or at least authorizers of the law. It is a regime premised on *self-rule*.⁷⁴ However we institutionally specify this ideal, decisions that are democratic in this bare sense might be retroactive, incoherent, or impossible to satisfy—all points in contradiction with the standard formulation of “rule of law.” In these respects, considerations of democracy and the rule of law seem to face in different directions, addressing different practical concerns and not tending in any reliable way to satisfy the concerns of the other. Put more simply: despite the widespread tendency to yoke the two together, there plenty of room in the rule of law for undemocratic government, and plenty of potential in democracy for violations of the rule of law.

From these standpoints emerge different standards for possible reconciliation, theoretical conjecture as to what might satisfy a person in each posture that the forms of power she confronts are appropriately responsive to her independence, distinctness, and reflective capacity. According to the rule of law, we can be (relatively) free in relation to rules that are stable, clear, and, if we follow Oakeshott’s specification, neutral in the sense that they are not tailored for or against one’s own peculiar interests or purposes.⁷⁵ The rule of law describes a well-mapped terrain on which one is as free as anyone else to make one’s way.

By contrast, from the standpoint of democracy, the citizen can be (relatively) free in relation to laws that she has authorized in some non-trivial sense. Otherwise, the view goes, the laws are a kind of arbitrary imposition, thrust on a person by history as other kinds of domination might be thrust on her by a tyrant. In its strong version, notably Jean-Jacques Rousseau’s endorsement of popular authorship of all general laws in *The Social Contract*, this standard implies that “On close examination, most nations would be found to have no laws.”⁷⁶ While Rousseau was content to accept this conclusion (aimed, notably, at the European powers of his time, not particularly at non-Europeans), most of us who consider ourselves democrats settle for more modest versions of authorship or authorization.⁷⁷

We might see these contrasting standpoints through two archetypal views of law, with which they have strong respective resonance. Following Aldo Schiavone, we can call these the

⁷³ Notably, Richard Fallon has described constitutional originalism as a “historicist” version of the rule of law. See Fallon, *supra* n. ___ at 11-14. This is an unusual use, particular to the politics of US jurisprudence in the 1990s. Even this use, although it does treat the source of law as criterial of the rule of law, is at its core about how the legal system must address its subjects: through rules derived from prior authoritative enactments. The democratic claims of this position are quite minimal: not that the living subjects of law should have any particular relationship of authorization or authorship to it, but simply that its pedigree be proper. Cf. David S. Grewal & Jedediah S. Purdy, *The Original Theory of Constitutionalism*, 127 *Yale L.J.* 664 (2017) (offering a reconstruction of eighteenth-century constitutional ideas focusing on both popular authorship of fundamental law and the consent of living generations to the content of that law).

⁷⁴ See *supra* n. 10 and sources cited therein (on democracy as collective self-rule).

⁷⁵ See *supra* nn. ___ - ___ (on Michael Oakeshott’s account of the rule of law).

⁷⁶ Jean-Jacques Rousseau, *The Social Contract*, Ch. III, sec. 15.

⁷⁷ See *supra* n. 10 (views of democracy as self-rule with a weaker standard than popular authorship of all general laws).

Greek and Roman views of law. In the Greek view, derived from the active self-rule of the democratic *polis*, law is made by the citizens, who, accordingly, approach it as authors, asking whether they have made something good, something fit to their purposes—and whether they should remake it. In the Roman view, derived from the science of law as it developed in the imperial period and was then recovered and remade in Justinian’s code and the long second life of Roman or civil law, the law is viewed from the standpoint of a rule-taking subject, whether a citizen guided by and answerable to law or a jurist interpreting and applying (but not making or authorizing) it.⁷⁸

These two views of law represent a real difference with concrete stakes. Each view corresponds, for example, to a conception of a constitution as, on the one hand, an epitome of legality, and, on the other, a particularly important act of popular sovereignty.⁷⁹ The distinction bears too on whether, and when, “legal” form properly constrains legislation apart from constitutional constraints.⁸⁰ At the same time, they are for certain purposes two mutually irreducible views of the same thing.

No matter how robust the sense in which the polity authorizes or even authors its own law, in most circumstances the citizen still confronts the law as a set of commands, from the standpoint of a law-taker. This is most evident as to laws our citizen opposed but which prevailed, or old laws that she and her contemporaries are effectively barred from reconsidering (such as constitutional provisions secured by supermajority amendment requirements).⁸¹ It is also true, however, of laws that she supported, but must then deal with in later practical circumstances in which they represent tax, regulatory, criminal, and other obligations vis-à-vis her individual undertakings. Her standpoint, then, becomes predominantly that of the subject of rule of law, even when she has also, with respect to the same piece of law, occupied the position of the law-authorizing democratic citizen.

This is to say, then, that the two views of law correspond to two human standpoints which are at once inseparable and mutually irreducible, at least for the democratic citizen.⁸² (Subjects of regimes that make no serious claim to democracy might not experience both standpoints.) Once

⁷⁸ See generally Aldo Schiavone, *The Invention of Law in the West* (2012) (distinguishing between Roman and Greek conceptions of law). It is notable that Michael Oakeshott, in his account of the rule of law, characterizes it emphatically as Roman. See Oakeshott, *supra* n. ___ [Rule of Law] at 178 (“The rule of law ... remains the most civilized and least burdensome conception of a state yet to be devised. And we owe it, not to the theorists, but to the two peoples who, above all others, have shown a genius for ruling: the Romans and the Normans.”)

⁷⁹ See, e.g., Richard Tuck, *The Sleeping Sovereign* 121-283 (setting out the conception of a constitution as a special form of democratic lawmaking); Ronald Dworkin, *supra* n. ___ [Freedom’s Law 1-33] (setting out the conception of a constitution as an exemplary expression of legal morality).

⁸⁰ I have in mind here Ronald Dworkin’s idea that a statute lacking “integrity” could in a sense fail to be law, or at least be very bad law. See Dworkin, *Law Empire* 176-208 (basic account of integrity as a defining, even criterial virtue of legality).

⁸¹ I accept that there is a sense in which it is possible to say that a democratic citizen authorizes even those laws she opposes or had no part in, so long as the procedures of legislation are fair and open to revision. I use these more intuitive examples to lead the general point that all law, once it exists, confronts the individual as a law-taker.

⁸² See Rousseau, *supra* n. ___ [Social Contract] at Chap. I, sec. 7 (“each individual ... finds himself under a twofold commitment, namely, as a member of the sovereign toward private individuals, and as a member of the state toward the sovereign.”) By “state,” Rousseau here means the polity that is ruled by the sovereign’s law.

again there is an asymmetry between democracy and the rule of law. The “pure” subject of the rule of law never has to enter into the standpoint of democratic citizenship, never has to ask into whether she has in some relevant way authorized the law. The democratic citizen, however, cannot evade the standpoint of the subject of rule of law. Yet (again) there is a consonance between the values and interests that she has at stake in each of these two opposed perspectives. Her motive as a subject of the law will be another aspect of the same that engages her as a citizen: the wish to see organized power somewhat reconciled with the free and reflective mind. Hence she should want her democratic laws to display also the character of the rule of law, and for the same kinds of reasons.

III.B. The Received Approaches, Revisited

Here I pause to revisit the familiar formulations of the relationship between the rule of law and democracy in light of what I have argued.

1. Despotism or Sovereignty?

Recall the first formulation: that the rule of law means keeping the ruler under law, hence achieving the rule of law rather than that of men. In that formulation, democracy frequently appears as a “popular despot,” a specter of unchecked majority power. Here there are four things to say—the first rather dire from the standpoint of this rule of law formulation, the other three mitigating.

First, from the standpoint of democratic sovereignty, the wish to constrain majorities permanently and absolutely from making some substantive judgment about the terms of common life (on economic ordering, let us say, or religious observation) is a wish for the impossible. The ultimate redoubt of political authority from the standpoint of democratic sovereignty is a properly constituted majority. The alternative is always minority rule, in the hands, say, of voters who can use a supermajority requirement to defeat a proposal, or judges who can determine that legislation is incompatible with a constitutional commitment. What we sometimes call the rule of past is simply minority rule in these kinds of forms.⁸³

Second, this does not mean that majorities may not be constituted in ways that disperse or slow down political decisions, whether by constitutional entrenchment subject to democratic amendment, separation of powers, sequences of votes, or in other fashion.⁸⁴ There is even a prudential case for selective use of supermajority requirements. So ultimate recourse to democratic majorities does not entail that rolling majorities can act on whim. In fact, the sorts of “limits” that I have sketched are just legal specifications of what it means for “the people” to act. My account of democratic rule of law treats these not as impositions on democracy, but as the necessary bounds and rudiments of a democratic system. There may be very good reason for “slowing” definitions of democratic action, reasons sounding in the shared concern of democracy and the rule of law for the acceptability of organized power for those who must live with it.⁸⁵

⁸³ In this I agree with Jeremy Waldron, who says, “The most straightforward answer is ‘Yes—everything is up for grabs in a democracy, including the rights associated with democracy itself.’” *Supra* n. __ [Law and Disagreement] at 303.

⁸⁴ This point tracks Waldron’s argument in *Law and Disagreement* at 304-306.

⁸⁵ See *id.* (canvassing some of these reasons).

Third, a clear-eyed recognition that democratic decisions must always be legally constituted is the best prophylactic against one major danger of democracy: the kind of demagogic appeal that claims the authority of “the people” in diffuse, rhetorical terms, without accountability to the political arithmetic of the ballot and other procedural requirements that figure in a given polity’s definition of democratic action. The danger of popular sovereignty is less in what “the people” will do than in opportunistic appeal to their ultimate authority by their self-appointed tribunes.⁸⁶ *Vox populi vox dei* holds in the troubling sense that neither the people nor a god straightforwardly and publicly speaks for itself, so each lends itself to creative and opportunistic interpretation. A democratic people *can* speak decisively, however, refuting the demagogue (or affirming that he is a valid representative)—when the democratic rule of law is present. The greatest opportunity for the demagogue comes when there is ambiguity in the democratic rule of law, whether introduced from outside (such as by tactical denial of the integrity of elections), or internal, such as when a system of separated powers produces incorrigible ambiguity as to the relative power and authority of, say, a president and a legislature, or a legislature and a constitutional court. Similar questions may arise in structures of federalism, where there is ambiguity as to location and authority of “the people(s).” There is much work to be done on how the U.S. constitutional system has invited demagoguery and constitutional crisis through its ambiguity on both points.⁸⁷

Finally, democracy entails certain protections of rights, particularly equal political rights, and related guarantees to keep debate open.⁸⁸ This is an aspect of the point about *isonomia* as constitutive of democracy, along with *demos* and *kratia*. While it is important to democratic authority that this principle should not be allowed to overgrow the other constitutive dimensions of democracy, hedging it around with substantive precommitments that preclude real disagreement, it is also true that measures such as group disenfranchisement should be understood as coups against democracy, not as internal to democratic politics.⁸⁹ Majorities do sometimes endorse such coups, as in some of the so-called “Redemption” campaigns that broke

⁸⁶ See, e.g., Jan-Werner Muller, *What Is Populism?* (2016) (arguing that the pernicious form of populism is a politics that identifies some constituencies as “the people,” others as outside the real body of the political community. In making this point, I am deliberately arguing against the optimistic characterization of this diffuse image of “the people” in some theorists of democracy. See, e.g., Ernesto Laclau, *On Populist Reason* (2005) (arguing that “the people” is an empty yet productive concept that may be rhetorically and imaginatively filled up in many different ways for many different reasons); Chantal Mouffe, *On the Political* (2005) (arguing the same themes). The American, constitutionalist version of this idea is the appeal to mobs and movements as the major bearers of constitutional meaning. See, e.g., Larry D. Kramer, *The People Themselves: Popular Constitutionalism and Judicial Review* (2004) (arguing for both institutional and “mob” styles of constitutional articulation); Robert Post and Reva Siegel, *Roe Rage: Democratic Constitutionalism and Backlash*, 42 Harv. Civ. Rts.-Civ. Lib. L.R. 373 (2007) (arguing for movement and popular interpretation as the key to constitutional legitimacy).

⁸⁷ I develop these points in Part V.A., *infra*.

⁸⁸ See John Hart Ely, *Democracy and Distrust: A Theory of Judicial Review* 105-34 (1980) (setting out rationale for constitutional review “clearing the channels of political change). See generally Jan-Werner Muller, *Democracy Rules* (2021) (emphasizing the central place of provisional decisions and openness to the future in the legitimation of democracy, particularly with reference to the consent of “losers” at any stage in the process).

⁸⁹ See Richard Tuck, *supra* n. __ [Active and Passive Citizens] at 137-44 (addressing this distinction in the context of Nazism).

the legacy of Reconstruction and brought in Jim Crow to the American South.⁹⁰ This is, I am afraid, just a reminder that any form of government can do terrible things, including repudiating democracy's premise of political equality. It is worth noting, however, that saying Jim Crow was not democratic even if it sometimes had majority support is not a merely definitional point: disenfranchisement of Black citizens was essential to the "Redemption" movement precisely because universal enfranchisement keeps open political coalitions, options, and possible majorities: the rise of (white) Populist-(Black)-Republican "fusion" coalitions in states such as North Carolina was an immediate spur for "Redemption," whose target was the very possibility of such coalitions.⁹¹

2. Neutrality?

In the second formulation from the beginning of this article, the rule of law was styled neutral by virtue of formality, often in virtue of its special association with "general" legal forms such as property and contract. Democracy, by contrast, was styled as incorrigibly purposive, producing legislation that effectively tells people *what* to do rather than *how* to pursue their own projects if they want legal sanction. I think the claim on behalf of formalism as a vehicle of neutrality has some force, best explored in the theory of private law as a legal structure of personal autonomy and interpersonal reciprocity.⁹² A crude realism that sees all law as homogenously an extrusion of the state neglects a genuine issue of form, and a genuine affinity between certain forms and important human values.⁹³ Nonetheless, it is also true that formalism's neutrality is easily overstated. The clearest expression of this point is in Robert Hale's canonical argument that to give everyone "the same" formal legal rights is in fact to give them profoundly different capacities depending on which resources the law in fact assigns to them: thus a "neutral" regime of state law can produce and maintain a profoundly disparate set of everyday legal relations, expressed in the contractual and other interactions of formally equal but substantively unequal legal subjects.⁹⁴ This point holds against the version of formalism that identifies the rule of law with certain substantive commitments, notably those of the marketplace. As Jeremy Waldron has pointed out, the more general kind of formalism, emphasizing simply the manner in which law's requirements are laid out, is on reflection hard to

⁹⁰ See C. Vann Woodward, *The Origins of the New South 1-50* (1951) (recounting the events and dynamics of the breaking of Reconstruction); Eric Foner, *Reconstruction: America's Unfinished Revolution, 1863-77*, pp. 564-610 (same).

⁹¹ See C. Vann Woodward, *The Strange Career of Jim Crow 31-66* (1955) (account of the populist coalition whose success was the immediately prompt for the breaking of Reconstruction); Woodward, *Origins of the New South* at 345 (describing extent of disenfranchisement in Southern "redemption" states of both Black and poor white citizens).

⁹² See Hanoch Dagan, *A Liberal Theory of Property 1-9, 40-51* (2021) (arguing for the central place of a complex view personal autonomy in the justification and assessment of private law); Daniel Markovitz, *Making and Keeping Contracts*, 92 Va. L. Rev. 1325 (2006) (complex view of personal autonomy and integrity at the normative core of private law).

⁹³ This strain of thinking runs back at least to John Austin's positivism, which held all law to be the command of a sovereign. See Austin, *Province of Jurisprudence Determined* 185 (Library of Ideas ed., 1954) and found an American expression in Jerome Frank, *Law and the Modern Mind* (1930). For a contemporaneous assessment of this view by someone closely associated with but then turning against it, see Roscoe Pound, *The Call for a Realis Jurisprudence*, 44 Harv. L. Rev. 697 (1931) (chastening certain self-styled realists for failure to appreciate the distinctive tasks of law).

⁹⁴ See, e.g., *supra* n. 6 [Robert Hale, *Freedom through Law*].

understand as a contrast with democratic lawmaking: democratically authorized laws, adopted for some purpose or other, *may* lack certain desiderata of formalism, but so may, say, judicial opinions or the body of the common law, and neither kind necessarily lacks those desiderata.⁹⁵ The criticism is better directed to specific failures than to whole sources or varieties of law.

A part of the reason for democratic decisions over the terms of shared life is that distributional questions do not arise within legal formalism but are essential to determining its consequences—for the practical capacities and relationships of persons and, by extension, to certain conceptions of *isonomia*, which democratic rule of law demands in some form. And the point about the limits of formalism may be pressed further, for many legal decisions choose among varieties of formalism. Does bargaining include collective or even sectoral bargaining, or is it individual at every point? May employees and consumers “opt” contractually into arbitration agreements to resolve key disputes about their rights, and, if so, what counts as a valid choice to do so? Are non-compete agreements valid? The concept of neutrality doesn’t answer these questions, and the decision that does answer them cannot but be distributional in Hale’s sense. So, in sum, formalism is neither self-defining nor neutral, so the choice that gives it further content must come from outside, and itself cannot be neutral in the sense to which formalism aspires. The rule of law as “neutral” formalism, then, is at best incomplete, and at worst a disingenuous form of distributional politics.

3. Complementarity?

The third account of the rule of law sketched earlier treats it as complementary to democracy in the sense that both are brakes on arbitrary or abusive power. This account in one form extends to the claim that the rule of law may be the greatest benefit that democracy offers. I hope to have persuaded the reader that this view understates the distinctness of the two concepts, and in particular advances too diffuse an idea of democracy. I’ve argued that democracy is best understood as a *mode of collective decision* that advances the question “who rules?” with a set of legal criteria specifying when “the people” have acted in their political capacity. To repeat, democracy therefore addresses people as citizens assessing and choosing the terms of common life, rather than as subjects of law. And collective decisions can in fact come into conflict with any plausible conception of the rule of law. Nonetheless, this difference, with the resulting potential for conflict, does not imply that democracy and the rule of law are incorrigibly at odds. Quite the contrary, as I have tried to show. But to show their complementarity requires careful parsing of the relationship between quite different systems of principle and practice, not the assimilation of either to the other.

4. Deflation?

Last, I noted that the contrast between the rule of law and democracy, abstractly invoked, just might not make for all that instructive a pairing, given that each concept is essentially contested and part of a broad, overlapping package of “modern” liberal public values. I noted that there is some wisdom in this. At the same time, this entire essay is an answer to a strong deflationism. To the extent I have succeeded in my arguments, I have established that there is value in asking about the relationship of democracy and the rule of law.

⁹⁵ See, e.g., Jeremy Waldron, *Thoughtfulness and the Rule of Law* 208-34 (on the meaning that the qualities canonically associated with the rule of law have when embodied in legislation).

I suppose that from the deflationist perspective what I have done is to advance a particular conception of democracy—as a mode of collective decision that makes operational the idea of popular sovereignty—and argued that, at least for *this* conception of democracy, there is a great deal to say about its relationship to the rule of law. I think this conception of democracy has a great deal to say to any conceptions of the rule of law. In that respect, it is not a question of pairing a preferred conception of democracy with a preferred conception of the rule of law, a procedure that might seem too a la carte to support any general conclusions. The question of defending this conception of democracy is a separate one. I have given reasons for it elsewhere.⁹⁶

IV. The Democratic Rule of Law and the Rule of Public Law

One perennial concern for a democratic view of law is the prospect of governmental usurpation of the people’s sovereignty. That is, law takes its authority from popular authorization, but conveys a great deal of power to public officials who may act beyond, or contrary to, their proper authority. Some of the traditional criteria identified with the rule of law sound in this register. The requirement that public officials administer the law in keeping with its letter (and spirit, so far as that contributes to a fair public understanding of the law’s meaning) is, of course, necessary for law to function as notice for individual and joint planning purposes; but it is also a statement of the limits of the proper power of officials on a democratic view. Other criteria do a similar kind of double duty. The requirements of promulgation and publicity, for instance, are indispensable if the law is to give notice, but are also necessary if a citizen is to be in position to assess whether the law has authorization (now) and deserves it (prospectively). As John Hart Ely argued in a different context, open channels of communication are essential to ongoing democratic legitimation.⁹⁷ It is even interesting to ask whether the standard of generality, the requirement that a system of law should treat like cases alike, is democratic because it essentially respects *isonomia*, the principle that laws are made by a community of equals *for itself*, that is, for all its members on the same terms.

In a fascinating and groundbreaking contribution to this volume, Jonathan Gould explores the case for a “rule of public law” that articulates principles of legitimate political decision in terms drawn from rule of law discourse.⁹⁸ Gould argues that a political decision might violate the rule of public law because it (1) amounts to a power grab, an attempt to claim jurisdiction or authority that properly belongs to another political actor (or none at all); (2) is motivated by the

⁹⁶ See Jedediah Purdy, *Two Cheers for Politics*, supra n. ___ at 15-25, 61-91 (making the case for this understanding of democracy).

⁹⁷ See supra n. ___ (Ely on clearing the channels of political change). Other familiar criteria do not seem to bear directly on the question of democratic legitimation. The bar on impossible or paradoxical legal requirements, for instance, seems a general anti-perversity principle from the vantage point of the subject and, from that of the citizen, seems to impute to the popular sovereign a minimal rationality. The criterion of stability or durability also seems to have nothing in particular to do with democracy. Indeed, it may be the case that a democracy can self-consistently impose retroactive penalties, and that one paradigmatic democratic practice, the Athenian custom of ostracism (voting into exile leaders or other grandees thought to have become dangerous to the polity) amounted to such a penalty. The interesting question is whether, when such a practice is itself widely known and understood, those who stick their heads over the parapets of politics are “assuming the risk” of a valid legal penalty even though the criterion of that penalty is simply a popular vote.

⁹⁸ [All of these citations will have to come in once we have the final version of Gould’s piece set for publication.]

wrong kinds of reasons, such as personal or familial advantage, the punishment of opponents, or the undermining of the polity; or (3) bespeaks a cavalier attitude toward legal constraint in general, a willingness or positive eagerness to steer by what one can get away with, and only that. Gould also notes a fourth possibility, structural rather than individual: the rule of public law could be undermined by systemic lack of constraint on official power. While I will not attempt a complete engagement with Gould's rich account, in several respects it merits comment.

First, Gould's framing marks an advance from the standard framing of the rule of law and/vs. democracy because it permits, indeed invites, a distinction that is often elided between public officials and sovereign lawmakers. Gould, I take it, is not arguing for imposing a legalistic morality on political decisionmaking, as certain versions of standard approach (3) do. Nor is he recapitulating the worry from standard approach (1) that the people, if a lawmaker, will be themselves unconstrained by law and so a despot. Rather he is homing in on an issue that is properly central to any vision of law that assumes popular sovereignty, which is how to keep public officials from usurping power and, as it were, turning it back on the people. Gould's insight is that, at least in a polity like ours with a tradition of praising both democracy and the rule of law, this democratic concern is often articulated as a rule of law concern. Moreover, the articulation is not just rhetorical: Gould's principles are particularly cogent and salient when cast in a specifically democratic light.

I'll make three connected points about each of Gould's first three criteria. First, to repeat, each has a strong democratic resonance. Second (and as Gould acknowledges), in application each soon runs into puzzles that themselves raise questions of political morality not answered by Gould's concepts. Third, the answers to these issues of political morality may lie in democracy itself. This is terse, but better to elaborate directly than to adumbrate further.

So, what's wrong with a power grab? On some accounts, it is how complex political arrangements change and adapt to new situations.⁹⁹ On a functionalist view of government, the question about a power grab would not be whether it comports with some criterion of legal-political morality, but whether it gets the job done. This is not only an ordinary and intuitive idea of how to assess governance; it is probably the elite common sense of our time, and has probably been for a long time.¹⁰⁰ And while the functionalist view can produce its own, technocratic list of forbidden power grabs (not to let the vaccine specialists set the interest rates, for instance), Gould seems to have in mind something more constitutionalist, sounding in the separation of powers. A free people doesn't let just any public official do just anything that the government might abstractly be authorized to do.

Why not, if it needs doing? Notice has something to do with it: we have some idea of what to expect from the Justice Department, from Congress, from the federal courts of appeal, and from the local health inspector. Scrambling those roles could be unsettling, even Kafka-

⁹⁹ See, e.g., Luuk von Middelaar, *The Passage to Europe: How a Continent Became a Nation* (Liz Waters, trans., 2013) (arguing that Europe's institutions have grown through effective Machiavellian grabs for power at times of crisis).

¹⁰⁰ See, e.g., Adam Tooze, *Crashed: How a Decade of Financial Crises Changed the World* (2018) (describing a series of ways in which central banks assumed new national and international powers); Jones & Laughlin (functionalist account of jurisdiction, to which more abstract constitutional rationalization had to be appended later).

esque. But the central idea strikes me as being different from this, something closer to a fiduciary principle: any given public official enjoys certain powers for certain purposes. And a fiduciary, of course, presupposes a principal. The idea of a power grab has clear force and application if we can say that certain public roles and jurisdiction are authorized by democratic decision, and others just are not.

But how do we recognize a power grab? Here is a puzzle of application. Partisans have their favorite uses of, say, executive power, and their favorite examples of the abuse of the same power, which can look quite similar to the jaded eye. Take, for advantage, executive actions bearing on immigration under recent administrations.¹⁰¹ The kinds of lawyers who might read this essay, moreover, specialize in generating reasons to distinguish among such actions, usually with conclusions that are reassuring to the partisan. So, without disrespect to contemporaries, it is helpful to step back a few generations to the New Deal. Opponents of Franklin Roosevelt's legislative agenda and executive initiatives had plenty of ground to assert that federal entrance into labor law, and much else, violated well established constitutional standards and was in that sense a power grab and (had the term been at hand) a violation of the rule of public law.¹⁰² The question was settled in the end as one battle within an epochal conflict over political morality: was the expanded federal remit a piece of tyranny or the key innovation of 20th-century constitutionalism? Although the Supreme Court did not then reverse course in quite as naked a way as it did in the recent *Dobbs* decision, the change in direction of opinions between 1936 and 1937 does not really conceal the fact that the question was resolved through a series of elections and appointments that left an older jurisprudence (and accompanying vision of the constitutional order) an anachronism within a few years.

A battle over the legitimacy of what was very colorably a power grab was settled when the new (putative) allocation of power received political authorization. Was that authorization of the right kind—in this case, constitutional authorization? A negative answer is the starting point of a tradition of anti-New Deal constitutional theorizing, inter alia the “constitution in exile” theme.¹⁰³ A positive answer is the quarry of a kind of constitutional theorizing which, since it cannot find formal constitutional change accompanying the reallocation of powers, instead devises criteria for “informal amendments.”¹⁰⁴ From the point of view of a democratic rule of law, the question is the right one; but uncertainty about the answer is a problem: it means democratic resolution of conflicts over political morality may be unable to achieve decisiveness. Without that decisiveness, appeal to the democratic rule of law risks becoming a partisan football.

¹⁰¹ See, e.g., *United States v. Texas* (US 2023) (reversing a Fifth Circuit decision and upholding Biden administration shift in deportation policy to target certain individuals with criminal records who were also thought to be terrorists or otherwise pose a current threat to public safety); *Trump v. Hawaii*, 585 U.S. ____ (2018) (reversing a Ninth Circuit decision and upholding a Trump administration shift in deportation policy suspending entry and immigration of nationals of eight countries).

¹⁰² See, e.g., *Carter v. Carter Coal Co.*, 298 U.S. 238 (1936) (striking down on Commerce Clause grounds elements of the Bituminous Coal Conservation Act of 1935, a representative corporatist measure of the early New Deal); *Heart of Atlanta Hotel, Inc., v. United States*, 379 U.S. 241 (1964) (upholding on Commerce Clause grounds key aspects of the Civil Rights Act of 1964); Bruce Ackerman, *2 We the People: Transformations* (1998) (arguing for the politically and conceptually revolutionary character of key changes in constitutional doctrine).

¹⁰³ See Douglas H. Ginsburg, *Delegation Running Riot*, *Regulation*, No. 1, 1995, at 83, 84 (introducing this phrase).

¹⁰⁴ See Ackerman, *supra* n. ____ [*2 We the People: Transformations*]

More briefly, take Gould's second candidate for a violation of the rule of public law, a decision made for the wrong kind of reason. Some kinds of reasons are relatively straightforward: pecuniary self-enrichment is the paradigm of a violation of fiduciary duty, the kind of purpose for which no one has ever been granted power by a principal. But the interesting ones are hard because they are aspects of fights over political morality. Consider an action intended to benefit friends and harm enemies. Is this a violation of the rule of public law? The answer seems to depend on how we characterize the scope of permissible public purposes that also provide an occasion to support favored constituencies and allies over disfavored ones and opponents. The crafting of legislative districts to favor incumbent candidates and the incumbent party and, perforce, harm the prospects of opponents is one example: it is regarded as legitimate under existing statutory and constitutional law, except where it predominantly targets racially defined groups; perhaps it should not be; but that would require a new political dispensation.¹⁰⁵

Or take Gould's third candidate for a violation of the rule of public law, an attitude of indifference toward legal constraint. Once again, the puzzle is that one person's indifference may be another person's fidelity to an alternative view of political morality. The official who lines his pockets because he can presents the easy case; but the interesting case is the official who believes the constraints he is seeking to evade are themselves incidents of a questionable political morality, and that his evasions are efforts to make the law more true to itself. This is, I think, not at all unusual. Think of the future Justice Robert Jackson serving in FDR's administration, taking what were by the jurisprudence of the time far-out positions on congressional and executive power—positions for which he also made a book-length public argument as part of a broader political, intellectual, and legal push against a conservative supreme court.¹⁰⁶ While a disposition to respect the law is in one sense the *sine qua non* of the responsible public official, the content of that respect depends on contested visions of political morality. Like views of the separation of powers and views of permissible public purposes, these are ultimately constitutional questions, whether in the strict doctrinal sense or the broader sense of the web of statutes and norms that form the ligature of political morality. In a democratic view of law, these are competing views of what the people have authorized, and, as the arc of Jackson's career demonstrated, they are susceptible to dramatic political change.

This brings us to Gould's final and more structural candidate: a systemic lack of constraint on official action. Here I would like to take Gould's proposal in what may be a slightly unexpected direction. A serious structural deficiency may arise where there is incorrigible ambiguity as to what the people have authorized and prohibited—and hence, which view of the allocation of powers, permissible purposes, and the content of legality more generally deserves to anchor and orient the political morality of the rule of public law. This is in a sense a lack of constraint and in another sense a lack of authorization, for these are two sides of the same coin, and the question is to know which is the true coin and which the counterfeit. At least on a democratic view of law, the questions of political morality that the rule of public law raises in any specific application need a means of authoritative democratic resolution. This is what the rule of (public) law needs from democracy. And democracy, in turn, can fulfill this need only if

¹⁰⁵ See *Rucho v. Common Cause*, 588 U.S. 684 (2019) (upholding partisan gerrymandering against constitutional challenge).

¹⁰⁶ See Robert H. Jackson, *The Struggle for Judicial Supremacy: A Study of a Crisis in American Power Politics* (1941).

what I have called the democratic rule of law is present, that is, if the means of democratic authorization are clearly specified in law.

This is why those who care about the rule of law and democracy should also care about the barriers to democratic decision in the U.S. legal-political order. I turn now to those barriers.

V. Some Problems with the Democratic Rule of Law in the United States

Democracy has long been haunted by the fear that it amounts to mob rule, and law's constitutive role in democracy is part of the answer to the worry. Democratic power comes into being through legal form, and that form constrains even as it enables. The constraint implies, for example, that it would be usurpation to hold onto power after losing an election, or to change the rules for determining electoral victory after the ballots have been cast. A democracy is, in one real sense that follows Oakeshott, a moral association defined by the recognition of rules *which define when the people have acted*.¹⁰⁷ A democracy makes such popular action the criterion of subsequent legality—hence *rule* by people; but the popular action itself has legal definition as its condition of possibility, and claims for popular decision outside that definition are lawless. Marches, riots, twitter riots, etc., may have persuasive power (for or against their nominal goals, if they have any); but they lack jurisdiction to say what law is, what shall be done with official power. In them, people speak and act, but “the people” do not—not because, as skeptics too readily say, “the people” does not exist, but because the people act only through legal form, in which they may speak law, i.e., in which they have jurisdiction.¹⁰⁸ And jurisdiction, as Oakeshott emphasized, is the key to legal validity.¹⁰⁹

This framework highlights a few kinds of issues. These converge the danger of a lack, respectively, of coherence, prospectivity, and feasibility in the specification of democratic action in American law. Coherence has to do with recurrent, seemingly incorrigible ambiguities about when the people have spoken, and (put differently) which forms of concurrent and potentially contradictory institutional action count as popular decision. Prospectivity has to do with the lack of any adequate specification of the legal form of a key moment of popular action, the national constitutional convention. Feasibility has to do with the worry that the specifications of democratic action that we do have are effectively impossible barriers to such action, specifically in the case of federal constitutional amendment.

A. Coherence: Where (and When) Is the People?

While the Constitution speaks in the voice of its intended and eventual ratifiers, “the People,” it also, as James Madison famously observed, effects the total exclusion from government of the people in their collective capacity.¹¹⁰ There are, that is, two lawmaking tracks: the popular sovereignty of constitutional authorship and revision, and the highly mediated,

¹⁰⁷ See Oakeshott, *supra* n. __ (defining law as combining elements of a moral association and a rule-constituted “game”).

¹⁰⁸ See, e.g., Walter Lippmann, *supra* n. [13] (setting out skeptical view of democracy based on claim that “the people” is a fiction).

¹⁰⁹ See Oakeshott, *supra* n. __ (setting out law's key concern with jurisdiction, i.e., the validity of the antecedent positive action).

¹¹⁰ See James Madison, *Federalist* No. 63.

powers-separating system of representative government in which ordinary lawmaking takes place. The Constitution represents supreme sovereignty, but with a double ambiguity.

First, because an old and hard-to-amend Constitution offers a perennial invitation to litigate political losses (“relitigate,” in today’s odd locution implying that every disagreement is a species of court case), judges and justices are constantly invited to speak on behalf of “the People” over and against the (mediated) decisions of representative institutions. This is, of course, not a new observation, but rather something like the ur-question of three generations of constitutional theory, with its iconic formulation in Alexander Bickel’s “counter-majoritarian difficulty.” Nonetheless, like the rule of law itself, it is worth holding onto despite its familiarity. Whether judges invoke moral insight, trends in social attitudes, original understanding, or tradition, the claim in constitutional adjudication is that the people have settled the question at issue. Constitutional interpretation thus presents one institutional mode of resolving what the people say; while other institutions, most frequently electoral and representative, present another. Where the interpretation is controversial, as it generally is when stakes are high, disagreement will persist about how the people have spoken and what they have said.

There have been many attempts to turn this dilemma into a virtue. Perhaps courts’ interpretations invite and join in the cultural creativity of social movements, enriching the ferment of argument over basic principles.¹¹¹ Perhaps uncertainty and dispute are a source of legitimacy and solidarity: we don’t agree on what our basic principles amount to, but we are bound by agreement on their being *ours*.¹¹² Maybe the principled and deliberative character of adjudication means it gives us truer renderings of the *meaning* of our principles, and, in doing so, improves the quality of our more demotic public debate.¹¹³ Or maybe the push and pull of a pluralist democracy means that, over time, the courts will not stray far from public opinion, and they are best regarded as yet another (especially mediated) representative institution.¹¹⁴ I will simply say here that I think the plausibility and appeal of these conciliatory positions have declined considerably in recent years, and that this change is more a return to the norm than it is the rise of an anomaly.¹¹⁵ (I’ll also note that I don’t find any of them convincing as a matter of principle, but that is a matter I’ve argued elsewhere.)

The second ambiguity concerns the location of popular sovereignty as between state and national political institutions. The Constitution combines aspects of a national charter with aspects of a federation of sovereign states, obviously in institutions such as the electoral college and the senate, but also in doctrines such as the reserved powers of the states, and, more diffusely, in the ideological and institutional possibility that a state majority can assert democratic prerogative in the teeth of national legislation or administration. Doctrinally, one consequence is a decision such as the partial invalidation of the Voting Rights Act in *Shelby*

¹¹¹ See, e.g., Post and Siegel, *supra* n. __ [Roe Rage].

¹¹² See *id.*; Jack Balkin, Living Constitutionalism 59-73 (on the interpretive struggle to make constitutional law “our law”).

¹¹³ See Dworkin, Freedom’s Law *supra* n. __ (so arguing).

¹¹⁴ See Barry Friedman, *The Will of the People* (2009) (arguing that constitutional doctrine tends to track public opinion over time).

¹¹⁵ See Aziz Rana, *The Constitutional Bind* (2024) (arguing that the Constitution has been often and widely regarded as a plainly anti-democratic document).

County v. Holder based on a structural principle of the equal dignity of the states—a judicial interpretation of how the (national) people have spoken with respect to the character of arrangements among the (states’) people.¹¹⁶ More generally, the specter of state “nullification” of federal action looms in times of acute ideological disagreement, such as today’s clashes over immigration, abortion, and other questions. “You the people? No, *we* the people!” say the representative institutions of California, or Texas, depending on the outcome of the latest federal election.¹¹⁷ One doesn’t have to be a simple-minded nationalist to think that embedding the valuable principles of ideological diversity and subsidiarity in ambiguous constitutional specifications of popular sovereignty is political dynamite. The explosive potential arises in part from the lack of coherence in the American democratic rule.

B. Prospectivity: Constitutional Conventions

As David Pozen has recently observed, it is now widely felt that the U.S. Constitution has significantly anti-democratic features with distinct partisan effects; yet the same scholars and political figures who are first to point out these deficiencies (as they see them) tend to disown, even denounce, the very idea of a democratic convention to revisit fundamental law.¹¹⁸ A major reason is a lack of confidence that there would be any authoritative way of governing the procedures of such a convention to ensure. Questions with no clear answer include whether convention votes would be taken on a one-state-one-vote basis or a population basis; whether a convention could set its own agenda midstream or would be confined to the topics for which it was expressly called by Article V process; and how convention delegates would be selected in the first place. Lurking beneath all this uncertainty, and drawing sustenance from it, is a suspicion that fundamental law cannot really have a democratic origin, that popular sovereignty must be a myth draped over a mysterious and somewhat arbitrary inheritance such as the U.S. Constitution. That suspicion, in turn, lends itself to the conceptual expansion of “rule of law” as an alternative to democratic authorization in the project of making normative sense of law.

But it is precisely the articulation of legal rules that makes acts of popular authorization definite and discernible. The uncertainty surrounding a prospective convention is not a deep fact about democratic sovereignty (as a myth, a pretty name attached to a mysterious and chaotic force), but a fact about our failure to create legal rules precise enough to make democratic sovereignty viable. Pozen has intriguingly suggested that there might be a “common law” of conventions rooted in the practices of state constitutionalism, although of course the identification of custom in an area of political activity raises questions about who will be able to enforce the custom against violators. It is also quite plausible that a less gridlocked Congress could pass ordinary legislation setting out the default procedures for a convention, to be followed unless the act calling a certain convention specifies otherwise. Such legislation would not be a plenary exercise of Article I power, but an implementation of Article V, which directs Congress

¹¹⁶ See *Shelby County v. Holder*, 570 U.S. 529 (2013) (invalidating certain enforcement provisions of the Voting Rights Act of 1965).

¹¹⁷ See, e.g., J. David Goodman, *A Sweeping New Immigration Law Takes Effect in Texas*, N.Y. Times, March 19, 2024 (detailing Texas’s effort to take control of border policy in key respects); Katie Benner and Jennifer Medina, *Trump Administration Sues California Over Immigration Laws*, N.Y. Times, March 6, 2018 (on California’s “sanctuary” laws refusing cooperation with federal immigration enforcement in certain circumstances).

¹¹⁸ David E. Pozen, *The Common Law of Constitutional Conventions* (forthcoming, Cal. L. Rev.), available at https://papers.ssrn.com/sol3/papers.cfm?abstract_id=4663760

to call conventions under certain circumstances but leaves haunting silences as to what follows. Such legislation would represent a significant demystification of the idea of popular sovereignty and an essential contribution of rule of law principles to the viability of their counterpart democratic principles.

It strikes me that it is, at least in part, a problem of prospectivity, a failure of the democratic rule of law. The problem is that we are imagining a process with a unique authorship role in popular sovereignty, and we have virtually no non-partisan way of saying whose proposed constitutional text should count as a valid proposal for popular ratification. Claims to represent the people's authorial creativity and authentic concerns are sure to multiply, lending cover to some demagogue or other—or so the worry goes. This anxiety about political Babel tracks old aspersions on democracy, which is precisely what is interesting about it. Is democracy a cacophonous threat to orderly government, something better invoked than practiced when it comes to constitutional principle? Yes, when we lack the democratic rule of law. Otherwise, maybe not.

C. Feasibility: On Amendments

As the example of the U.S. Electoral College highlights, the law that specifies democracy can also make the criteria of self-rule counter-majoritarian. This is not just a theoretical possibility but a pervasive reality in political systems that inherit many institutions (upper houses, high courts, federalism) from periods in which counter-majoritarian and often elite interests were more candidly embraced and constitutionalized.¹¹⁹ In such situations, a democrat will take particular interest in what H.L.A. Hart called secondary rule of change, those that determine how law can be lawfully revised. In a democracy, these are the rules that define popular authorization of what Hart called primary rules, those directly governing conduct.¹²⁰ Barring powerful considerations to the contrary, a democrat should seek to shift secondary rules to bring their effective definition of popular authorization into line with actual majorities of those living in the polity.

This goal, changing the secondary rules that define popular consent, brings the democrat to engagement with tertiary rules, those that must be satisfied to change the laws of lawmaking, such as senate composition and the electoral college. These are, paradigmatically, constitutional. Some, of course, are themselves matters of ordinary lawmaking, such as the federal statute requiring single-member congressional seats, or sub-statutory, such as the Senate rule establishing the sixty-vote requirement for cloture on most issues, a.k.a. the filibuster. There is, nonetheless, a significant overlap between measures that change the secondary rules of democracy, that is, change what counts as an act of popular authorization, and measures that must pass through the gantlet of bicameral supermajority proposal and ratification by both houses of three-quarters of the states.¹²¹ It should concern a democrat that the meaning of popular authorization is substantially buttressed by legal definition against popular revision, that

¹¹⁹ See Michael Klarman, *The Framers' Coup: The Making of the United States Constitution* (2016) (detailing the role of elite interests and machination in the anti-majoritarian design of the Constitution).

¹²⁰ See Hart, *supra* n. __ at 89-96 (on the relationship of primary and secondary rules).

¹²¹ U.S. Const., Art. V. Article V also authorizes proposal via a convention called upon the resolution of three-quarters of states, a pathway that has never been used but at the time of writing is within reach for a long-running right-wing campaign of constitutional amendment.

is, that demanding tertiary rules lock in counter-majoritarian definitions of democratic action at the level of secondary rules.

Put differently: here is a law I don't like, a primary rule. To change it, I must seek popular authorization, generally meaning persuading a legislative body to vote on behalf of the people. Something like "majority votes of both legislative houses plus the signature of the executive" is a familiar example of the secondary rule, the definition of popular authorization for my change. But suppose the law I dislike is stuck, and I believe actual majorities would support changing it. So I "go up a level," so to speak, and try to change the definition of popular action. This might involve a lot of different measures. I could press to expand the franchise. I could press to authorize popular referendums on proposed legislation. I could press for a law that translates votes into legislative seats in a different way, say with multi-member districts, ranked-choice voting, or non-partisan primaries, which I believe would produce a more representative legislature. Because this is another, successive level of rules of change, I am extending Hart's phrasing by calling it tertiary.

This theme points to one more level of rules of change, which should be of special interest to a democrat.¹²² This is the level of rules for changing tertiary rules. As I noted earlier, some of these changes are just statutory, so that altering them resembles altering the "British Constitution," which may be done by an ordinary act of Parliament even though one recognizes that the law—such as those creating the Scottish and Welsh parliaments, or a hypothetical one introducing proportional representation—would be constitutional changes in the British sense, which is to say, changes to the rules of lawmaking itself, redefinitions of popular authorization. But, particularly in a system like that of the U.S., which traces lawmaking to sovereign acts of popular authorship in the special legal form of constitutional ratification and amendment, the legal criteria for these forms of action have a special status. The paradigm would be an amendment to Article V of the U.S. Constitution, for instance to authorize ratification of proposed amendments by majority vote in a national referendum, or to authorize a revision in states' representation in the senate. A democrat, it seems to me, should favor such changes, and must also understand that constitutional barriers to them represent very deep limits on the majoritarian character of U.S. popular sovereignty.

Conclusion

The rule of law and democracy are far from synonymous, but neither are they enemies or strangers. They serve a pair of complementary goals, each interested in how organized power may be made justifiable to the reflective and reasonably self-concerned person who confronts it. The rule of law does so by making the exercise of power more self-consistent and transparent, freeing it of the Kafka-esque element of unwelcome surprise and paradox. Democracy does so by tracing the authorization of law to those who will live under it. The rule of law thus addresses us as subjects of law, democracy as citizens.

¹²² Jean Hampton makes points similar to these. See Hampton, *Democracy and the Rule of Law* in 36 *Nomos* (1994) (arguing that the capacity to change law must be an aspect of the rule of law seen from a democratic perspective).

Democracy cannot have real, operational meaning without legal definitions of its key terms, which fill out the otherwise all too empty terms “people” and “rule” and so tell us when the people may be said to have acted with binding force. Democracy in this sense *is* a rule of law. Seeing this relationship clearly helps to correct certain persistent misapprehensions of the relationship between democracy and the rule of law. It also highlights a different set of problems: that US democracy, at least, is deficient in certain rule of law desiderata in ways that have contributed to its instability and vulnerability.

The effort to generate democratic will out of popular sentiment and ordinary struggle is necessarily legally mediated, and the terms of that mediation go very deep, to the working definition of the *demos*, how it may act, and how its members may revise their own definition and powers. In the legal affordances and constraints are keys to the flourishing or stifling of democratic action. What a democrat wants from the rule of law is a definition of democracy that enables the people to act, even upon its own powers.